AGREEMENT TO SELL

This AGREEMENT TO SELL is executed at Pune, on this_____day of_____month of the year 2025,

BETWEEN

KALEIDOSCOPE DEVELOPERS PRIVATE LIMITED [PAN _____], a company duly registered and incorporated under the Companies Act, 1956 having its registered office at: 101, Somnath, C.T.S. No. 988, Ram Mandir Road, Vile Parle (E), Mumbai 400057 and having corporate office at ' PSC House, CTS No. 111+111/2, Anand Colony, off Prabhat Road, Pune: 411 004,'. through its Authorized Signatory : _____, Age about Adult Years, Occupation: Service, having office address at: PSC House, 111/1+2, Dr. Ketkar Road, Off Prabhat Road, Erandawane, Pune – 411004.

Hereinafter referred to as '**THE OWNER/PROMOTER'** (which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns).

… PARTY OF THE FIRST PART

AND

1) *Mr. /Mrs.* _____

Age: _____ *Years,* Occupation _____ PAN : _____

2) *Mr. /Mrs.* _____

Age : _____ *Years, Occupation :* _____, *PAN :* _____

3) Mr./Mrs. _____

Age : _____ *Years, Occupation :*_____ *,PAN :* _____

4) Mr./Mrs. _____

Age : _____ *Years, Occupation :*_____ *,PAN :*_____

Residing at _____

Hereinafter collectively referred to as **'THE PURCHASER/ ALLOTTEE'** (which expression shall unless it be repugnant to the context or meaning thereof shall mean and include his/her/their respective heirs, executors, administrators and assigns).

…PARTY OF THE SECOND PART

(1) (a) Shree. Shivaji Baban Shedge , Age: -----years, Occupation: Agriculture,
(b) Mainabai Dilip Sanas Age: -----years, Occupation:
(c) Savitrabai Balasaheb Gawali Age: -----years, Occupation:
(d) Sanjabai Sopan Marne Age: -----years, Occupation:
(e) Nanda ShivajI Shedge Age: -----years, Occupation:
(f) Dhanshree Shivaji Shedge Age: -----years, Occupation:
(g) Tejashree Shivaji Shedge Age: -----years, Occupation:
(h) Tanmay Shivaji Shedge Age: -----years, Occupation:

(2) (a) Shree. Rambhau Sopan Shedge , Age: -----years, Occupation: Agriculture,
(b) Seetabai Rambhau Shedge Age: -----years, Occupation:
(c) Anusaya Nivrutti Ghogre Age: -----years, Occupation:
(d) Ankush Rambhau Shedge (deaceased) through L. R
(i) Vijay Ankush Shedge Age: -----years, Occupation:
(ii) Manali Vijay Shedge Age: -----years, Occupation:
(iii) Radhika Vijay Shedge Age: -----years, Occupation:

(3) (a) Shree. Bhagwan Rambhau Shedge, Age: -----years, Occupation: Agriculture,
(b) Rani Bhagwan Shedge Age: -----years, Occupation:
(c) Shon Bhagwan Shedge Age: -----years, Occupation:
(d) Bhakti Bhagwan Shedge Age: -----years, Occupation:

(4) (a) Surekha Ankush Shedge, Age: -----years, Occupation: Agriculture,
(b) Gouri @ Manjiri Ankush Shedge (after marriage- Manjiri Mosin Mulla)Age: -----years, Occupation:
(c) Sonali Ankush Shedge (after Marriage Sonali Amar Mane) Age: -----years, Occupation:

5. Rakhamabhai Rambhau Chondhe Age: -----years, Occupation:

(5) (a) Shree. Baban Tukaram Shedge, Age: -----years, Occupation: Agriculture,
(b) Sakhubai Baban Shedge Age: -----years, Occupation:
(c) Santosh Baban Shedge Age: -----years, Occupation:
(d) Smruti Santosh Shedge Age: -----years, Occupation:
(e) Sudynaka Santosh Shedge Age: -----years, Occupation:
(f) Sankalap Santosh Shedge Age: -----years, Occupation:
(g) Rajendra @ Raju Baban Shedge Age: -----years, Occupation:
(h) Kalpana Rajendra Shedge Age: -----years, Occupation:

(i) Akasah Rajendra Shedge Age: -----years, Occupation:

(j)Omkar Rajendra Shedge Age: -----years, Occupation:

(k) Rohidas Baban Shedge Age: -----years, Occupation:

(l) Dhanshree Rohidas Shedge Age: -----years, Occupation:

(m) Prathamesh Rohidas Shedge Age: -----years, Occupation:

(n) Surekha Haribhau Chondhe Age: -----years, Occupation:

Through their common constituted attorney Lucifer ----------

All residing at:- Village Bhugaon, Tahsil –Mulshi Disc.- Pune

Through their common constituted attorney **KALEIDOSCOPE DEVELOPERS PRIVATE** LIMITED through Authorised Signatory Pushakar Pramod Apte, Age:- Adult, Occupation:-Service, residing at _____,

1 to 5 are hereinafter collectively called as the "**Landowners**", which expression shall, unless it be repugnant to the context or meaning thereof, mean and include their respective heirs, successors, survivors, executors and assigns, …

…PARTY OF THE THIRD PART

The Owner/ Promoter, Landowners and the Purchaser shall hereinafter be collectively referred to as 'Parties', wherever the context so requires.

WHEREAS all those pieces and parcels of lands bearing Survey Nos. 125/5, 126/2, 126/3, 126/4, 127/1, 127/3, 127/4, 127/5, 128/1, 128/3, 128/4, 128/5, 129/2, 129/5, 129/6, 131/1, 131/3, 131/5, 131/6, 131/7, 132/1, 132/2, 133/1, 133/2, 133/3, 133/4, 133/5, 134/1, 135/1, 135/2, 135/3, 136/1, 136/3, 137/1+2, 138/1, 138/2, 138/4, 138/5, 140, 141/1, 141/2, 141/3, 141/4, 141/5, 142/1, 142/2, 142/6, 142/7, 143, 144/1/2a (1b/1), 144/2b(1b/2), 144/2, 144/3a, 145/1, 145/2, 145/3, 145/5, 146/1, 146/2, 146/3, 146/5, 146/6, 147/2, 147/3, 148, 149/1,149/2, 150/1, 150/2, 150/3, 150/4, 150/5, 150/6, 150/7, 151/1, 151/2, 152/1, 152/2, 153/1, 153/2, 154/1, 154/2, 154/4, 154/5/1, 154/5/2, 154/5/3, 154/6, 154/7, 154/8, 154/9, 154/10, 154/11, 154/12, 154/13, 154/15, 155/1, 155/2, 155/4, 155/5, 155/6, 155/7, 156/1, 156/2, 156/3, 156/4, 156/5, 156/6, 156/7, 156/8, 157, 159, 188/2, 197/1, 197/5, 197/6, 197/7, 197/8, 197/9, 197/11,197/12, 197/14, 197/15, 197/16, 197/17, 197/18, 197/21, 197/23, 197/24, 197/26, 197/27, 197/28, 197/29, 197/30, 197/32, 198, 199, 200, 201, 205, 208,209 totally admeasuring 47 Hectares70.39 ares i.e. 477039.00 Sq. Mtrs., situated at Bhugaon, Taluka Mulshi, District Pune, within the registration Sub-District Taluka Mulshi, District Pune and within the limits of Gram Panchayat Bhugaon, Panchayat Samiti, Taluka Mulshi, Zilha Parishad Pune (hereinafter collectively referred to as 'the said Township lands') are owned by various persons including the Owner/Promoter as follows:

Sr. No.	Survey No.	Name of owners	Area acquired in hector – are
1	Survey No. 125/5, 126/2, 126/3, 126/4, 127/1, 127/3, 127/4, 127/5, 128/1, 128/4, 129/2,129/5, 131/3, 132/1,132/2, 133/1, 133/2, 133/3, 134/1, 135/1,135/3,136/1, 136/3, 137/1+2, 138/1, 138/2, 138/4, 138/5, 140, 141/2, 141/3, 141/4, 141/5, 142/1, 142/2, 142/6, 142/7, 143, 144/1,/2 a, 144/1/2b, 144/2, 144/3a, 145/1, 145/2, 145/3, 145/5, 146/1, 146/2, 146/3, 146/5, 146/6, 147/2, 147/3, 148, 149/1, 150/1, 150/2, 150/3, 150/4, 150/5, 150/6, 150/7, 151/1, 152/2, 153/1, 153/2, 154/2, 154/4, 154/5/1, 154/5/2, 154/5/3, 154/6, 154/7, 154/8,154/9, 154/10, 154/11, 154/15, 155/1, 155/2, 155/4, 155/5, 155/6, 155/7, 156/1, 156/2, 156/3, 156/4, 156/5, 156/6, 156/7, 156/8, 157, 159,188/2, 197/1, 197/5, 197/6, 197/7, 197/9, 197/12, 197/16, 197/18, 197/21, 197/23, 197/24, 197/26, 197/27,197/28, 197/29, 197/30, 197/32, 198, 199, 200, 201	KDPL acquired Area by conveyance deed.	**12361/2016** Hectares 01.61 R & **12362/2016** Hectares 39.36 R total area Acquired by conveyance deed.
2	129/5, 131/3, 133/1, 134/1, 135/1, 136/1, 137/1+2, 155/2, 156/2, 156/8, 197/24 & 197/27,	KDPL acquired Area By Development right from their respective owner.	D.A. 281/2021 283/2021 286/2021
3	200	By Development right from Mr. Bhise.	01 Hector 67 R
4	154/6	KDPL acquired Area By Development right	D.A. 12457/2023 12461/2023

		from their respective owner.	10734/2023
5	146/1, 149/2, 151/2, 152/1, 154/1	KDPL acquired Area By Development right from their respective owner.	D.A 7819/2024

Hereinafter for the sake of easy reference the aforesaid lands are referred with their respective Serial Numbers.

AND WHEREAS as per the decision of Government of Maharashtra, Urban Development Department, Mantralaya, Mumbai dated 16/11/2005 having reference No. TPS 1804/Pune R.P.DCR/UD-13, published in Extra-ordinary Gazette through the Principal Secretary to the Government of Maharashtra sanctioned the 'Regulations for Development of Special Township' and as per new rules and regulation as amended in the new Special Township policy (hereinafter referred to as **'TOWNSHIP REGULATIONS'**) in the area under Pune Regional Plan, under the provisions of Maharashtra Regional and Town Planning Act, 1966.

AND WHEREAS the Govt. of Maharashtra vide its policy under notification dated 08/03/2019, bearing No. TPS-1816/CR-368(Part-1)/15/37 (1CC) (G)/VIYO/UD-13 (said ITP Policy) has modified the ITP regulations by introducing the concept of Integrated Township. Under the new policy the Developer undertaking special township can transit to integrated township by getting approval under the new township regulations under ITP. The Owner/Promoter herein intends to transit to ITP. Subsequently the Owner/Promoter has submitted revise layout (PLU) proposal for approval of PMRDA, Pune under said ITP Policy. The PMRDA, Pune has

sanctioned/approved the revised Layout (PLU) under ITP vide BMU/ Mou. Bhugaon / survey no.125/5 & others/ pra.kr. 2012/24-25/9712 dtd 24/01/2025

AND WHEREAS so as to promote public housing, by incentivizing investment by private sector in development of housing, the Government of Maharashtra has put forth the concept of self-sufficient 'Integrated Township Project' i.e. **ITP** consisting of flats / residential units, educational institutes, commercial units, Amenities, health facilities, parks, gardens and public utilities etcetera which is to be exclusively developed, constructed and maintained by the Promoter / Developer as per the Township Regulations.

AND WHEREAS KALEIDOSCOPE DEVELOPERS PRIVATE LIMITED. which was a company duly registered and incorporated registered and incorporated under the Companies Act, 1956 having its registered office at: 101, Somnath, C.T.S. No. 988, Ram Mandir Road, Vile Parle (E), Mumbai 400057 and having corporate office at ' PSC House, CTS No. 111+111/2, Anand Colony, off Prabhat Road, Pune: 411 004,'was the owner/ developer of the Township Project " KALEIDOSCOPE " as has been elaborated later hereunder – hereinafter referred to as the said " **OWNER/ PROMOTER**",

AND WHEREAS the Owner/ Promoter herein has purchased the lands at Sr. Nos. 1 out of the said lands and also acquired the development rights of lands at Sr. Nos. 2 out of the said lands with an intention to promote, develop and establish an TOWNSHIP PROJECT thereon (hereinafter for the sake of brevity referred to as the '**TP**'), as per the new Township Regulations and initiated required actions and steps for obtaining necessary sanctions and permissions in that regard.

AND WHEREAS the owners of pieces of lands at Sr. No. 3 stated above, showed their willingness to the Owner/Promoter to include their respective lands in the **TP** to be carried out by the Owner / Promoter and further also agreed to join the Owner / Promoter as the Owners of their respective pieces of lands, in getting various permissions and sanctions for the **TP** and hence, by executing separate

letters of consent / confirmations / Power of Attorneys etc., the owners of the lands at Sr. Nos. 3, consented for including their respective lands as the part of the **TP** as per the terms stated in their respective letter of consent / confirmation and the Owner/ Promoter also obtained the Letter of Consent cum Undertaking from the owners of lands stated at Sr. Nos. 3 out of the said lands, for including their respective lands in the **TP,** subject to certain understanding with them.

AND WHEREAS as per the order dated 10/08/2017, F. No. 21-52/2017- 1A-III, passed by Government of India, Ministry of Environment and Forest & Climate Change (IA.III Section) through its Additional Director (IA), Environmental Clearance was granted to the Owner/Promoter for construction of Special Township called as '**Kaleidoscope"** on the said lands, subject to certain terms and conditions as stated therein and same is valid and in subsistence. Subsequently, the Owner/Promoter has obtained Environmental Clearance on 30/11/2018 from State Level Environment Impact Assessment Authority; vide letter bearing no. SEIAA Cell/CR-137/2018, Environment Department, 217(Annex) Mantralaya, Mumbai-32, which is valid as on date.

AND WHEREAS the Owner/Promoter firstly applied for obtaining Locational clearance in respect of the lands mentioned in application and as per notification dated 02/07/2015, bearing No. 1814/2130/CR-98/15/UD-13, (i.e. Locational Clearance) and then applied for revised Locational Clearance for the additional lands and as per notification dated 21/08/2015, bearing No. 1814/220/CR-275/14/UD-13, (i.e. Locational Clearance) issued by Urban Development Department, Government of Maharashtra, Mantralaya, Mumbai- 400 032 published on 21/08/2015, in the Official Gazette of Government of Maharashtra, the Township Project of the Owner/ Promoter in respect of the aforesaid lands and some other lands subject to certain terms and conditions as stated therein.

AND WHEREAS as per Letter of Intent dated 09/03/2016, No. PMRDA/Mouje Bhugaon/S.No. 125/5 & other/1975, issued by the PMRDA, Pune and Second

revised Letter of Intent dated 05/12/2016, No. PMRDA/Mouje Bhugaon/ S. No. 125/5 & other/772 issued by PMRDA and dated 30/11/2018, No. Mulshi/N.A/SR/07/2018, issued by the Collector, Pune. and sanction has been granted to the Owner/ Promoter to develop the Township Project on the said lands, subject to certain terms and conditions as stated therein.

AND WHEREAS the Govt. of Maharashtra vide its policy under notification dated 08/03/2019, bearing No. TPS-1816/CR-368(Part-1)/15/37 (1CC) (G)/VIYO/UD-13 (said ITP Policy) has modified the special township regulations by introducing the concept of Integrated Township Policy (ITP). Under the new policy the Developer undertaking special township can transit to integrated township by getting approval under the new township regulations under ITP. The Owner/Promoter herein intends to transit to ITP. Subsequently the Owner/Promoter has submitted revise layout (PLU) proposal for approval of PMRDA, Pune under said ITP Policy. The PMRDA, Pune has sanctioned/approved the revised Layout (PLU) under ITP vide its letter bearing no. BMU/C R No. 864/21-22 Mauje Bhugaon/ Survey no. 125/5, 126/2 and others dated 08/07/2022. Further revisions of the layout were approved on 30/11/2023 (BMU/ Mou. Bhugaon / survey no. 125/5 & others, C R No.1132/23-24/6525) and on 12/07/2024 (BMU/ Mou. Bhugaon / survey no. 125/5 & others, C R No.56/24-25/3068). Further revision of the PLU vide letter bearing BMU/C R No. Bhugaon / survey no.125/5 & others/ pra.kr. 2012/24-25/9712 dtd 24/01/2025 24/01/2025.

AND WHEREAS aforesaid all those pieces of lands totally admeasuring 47 Hectares70.39 ares i.e. 477039.00 Sq. Mtrs., are owned by Owner/Promoter and others for which the Layout (PLU) dated 20/11/2018, bearing No. BMU/Mouje Bhugaon/S. Nos. 125/5, 126/2 & others/Pr. Kr.1835/17-18, sanctioned and approved by the Pune Metropolitan Regional Development Authority, Pune, for development of Special Township Project for land admeasuring 47 Hectares70.39 ares i.e. 477039.00 is more particularly described in the Schedule-I written hereunder and hereinafter referred to as 'the Said **PRESENT TOWNSHIP LAND**', the copy of master layout/PLU is annexed herewith as Annexure 'A'.

AND WHEREAS the Owner/ Promoter herein has purchased/acquired the lands mentioned in Table above and the development rights in respect of the lands in Table above with an intention to promote, develop and establish a **TOWNSHIP PROJECT** thereon (hereinafter for the sake of brevity referred to as the **'TP'**), as per the Township Regulations and initiated required actions and steps for obtaining necessary sanctions and permissions in that regard.

AND WHEREAS accordingly, the Owner/Promoter is developing a **TP** on the said Township Land, named as '**Kaleidoscope'** (hereinafter referred to as the **TP**) which comprises of various User Zones/Sectors.

AND WHEREAS in accordance with the permission and sanctions granted by various authorities, the Owner/Promoter has started development of the **TP**.

AND WHEREAS in accordance with the revised permission and sanctions granted by PUNE METROPOLITIN REGIONAL DEVELOPMENT AUTHORITY, Pune (PMRDA) with respect to development permission vide BMU/ Mou. Bhugaon / survey no.125/5 & others/ pra.kr. 2012/24-25/9712 dtd 24/01/2025, the Owner/ Promoter has started development of the said "Kaleidoscope R5 -Misty Greens - phase 3-B**"**

AND WHEREAS as part of the development of said Township, the Owner/Promoter has propose to construct of Sector/ Project consisting of residential Bungalow plots as per the sanctioned plans on the Sector No. R-5 Misty Greens - Phase 3-B, totally admeasuring 11116.08 Sq. Mtrs., out of the said Layout and the Sector/Bungalow plot Project to be known as "Kaleidoscope R5 -Misty Greens - Phase 3-B**"**

AND WHEREAS a part of development of the said Township by utilizing the said FSI from the potential in the KDPL Township Land presently on part of Sector No. **R- 5 Misty Greens - phase 3-B,** admeasuring 11116.08 Sq. Mtrs., of

the said revised Layout, the Owner/Promoter has proposed to develop the bungalow plots in the project to be known as **"Kaleidoscope R5 -Misty Greens - phase 3-B"** hereinafter collectively referred to as 'the said Project', as per the sanctioned plans. The said **Sector No. R- 5 Misty Greens - phase 3-B** is more particularly described in Schedule-III written hereunder and hereinafter referred to as the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** Project Land and the project upon Sector No. R-5 is known as "the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** hereinafter referred to as 'the said **"Kaleidoscope R5 - Misty Greens -phase 3-B"** and/or said Project. The layout of the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** Project land, carved out of the said Township Land is annexed herewith as Annexure 'B'.

AND WHEREAS the Owner/Promoter has registered the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** under the provisions of the Real Estate (regulation and Development) Act 2016 (said "ACT") with the Real Estate Regulatory Authority. Copy of Registration Certificate have been annexed and marked as **Annexure 'J'** hereunder

AND WHEREAS the Purchaser has expressed his/her/their desire and applied to purchase a Sector/Bungalow plot as described in detail in the **SCHEDULE-IV**, written hereunder and more particularly shown in the plans annexed herewith as **Annexure 'C',** which Sector/Bungalow plot in hereinafter in this agreement for all intention and purposes is referred to as '**THE SAID BUNGALOW PLOT'**, comprising land and F.S.I and at the price hereinafter agreed and subject to terms and conditions stated hereunder.

AND WHEREAS by virtue of the Sale Deed/Development Agreement/Power of Attorney the Owner/Promoter has sole and exclusive right to sell the Sector / Bungalow plots in the said-"**Kaleidoscope R5 -Misty Greens - phase 3-B"** to be developed by the Owner/Promoter on the said project land and to enter into Agreement/s with the Purchaser(s)/allottee(s)/s of the said Sector/Bungalow plot to receive the sale consideration in respect thereof;

AND WHEREAS the Owner/Promoter has explained to the Purchaser and the Purchaser has well understood that:

i) the Owner/Promoter intends to form separate entity of the purchasers of units/tenements in various projects or sectors of the **TP** being carried out on the said **Kaleidoscope** Township Land and execute and register or cause to be executed and registered the conveyance of the concerned land along with the Bungalow plots/Bungalows/Towers/buildings/structures constructed thereon in favour of the concerned entity, wherein the land and Bungalow plots/ bungalows/ buildings/towers i.e. structures of the units/tenements constructed thereon, shall belong to such entities as per their respective deed of conveyance and the members thereof shall have rights to use and occupy their respective Bungalow plots/bungalows/tenements/flats/units/premises. All such entities are hereinafter collectively referred to as 'the said entities'. The Owner/Promoter desires to form a Co-operative Hsg. Society classified as 'co-partnership Hsg. Society' on the said "**Kaleidoscope R5 -Misty Greens - phase 3-B"** Project land. All plot Purchasers in the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** project land shall become members of such society, which is hereinafter referred to as 'the said society'.

ii) the Purchaser/Allottee shall have no claim on any other part of the said Project / **TP** except the said Sector /Bungalow plot, nor can make any claim or raise any objection to the development of the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** Project land or the said Project /**TP**/said township land or any amenities and facilities.

iii) the Owner/Promoter shall have total discretion in the matter of development and maximum utilization of FSI of all the sectors or portions of the said Township Land and shall be entitled to develop, sell and dispose of Sector/ Bungalow plots in the said project being developed on the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** Project land without being objected by the purchasers and said Society, including the Purchaser herein of the said Sector / Bungalow plot.

iv) the Purchaser shall have limited claim only in respect of the said Sector/Bungalow plots envisaged under this Agreement,The development of the TP, as well as the entire project land of "Kaleidoscope R5 - Misty Greens - Phase 3 (A, B & C)," shall be carried out in sub-phases.The Owner/Promoter proposes to develop "Kaleidoscope R5 - Misty Greens - Phase 3C" in accordance with applicable approvals and regulations. The total area currently admeasures **66,956.09 sq. meters** and consists of residential sectors/plots as per the sanctioned layout plan for Phases 3A, 3B, and 3C. The layout includes gardens, open spaces, utility areas, and internal roads carved out of the land.This land is subject to change as per modifications in the PLU from time to time. Additionally, the land area for

Phase 3 is expected to increase in the future, subject to necessary sanctions.

v) the **TP** shall have various types of amenities, Facilities and Utilities:

a) Paid Facilities as indicatively enlisted in **Annexure 'D',** hereinafter referred to as the said **'OPTIONAL AMENITIES'** shall be owned and managed by Owner/Promoter. The Owner/ Promoter shall be entitled to sell, convey, transfer and give it to operate of the Optional Amenities/ Facilities for consideration or otherwise, to any other person, company or a Society corporate. Hereinafter such other person, company or a Society corporate called as said 'Owner-Operator'

b) Amenities as indicatively enlisted in **Annexure 'E-1'**, hereinafter referred to as the said **'TOWNSHIP AMENITIES'** shall be owned by the Owner/Promoter and will be maintained out of common contribution received from Said society/said entities/ unit Purchasers in the said **TP**. Consequently, the flat/bungalow plot/bungalow/unit/tenement Purchasers shall be entitled to utilize the said Township amenities. The Purchaser /Allottee herein on payment of TMC as described herein and other charges as may be decided will be entitled to use thereof and as per the rules and regulations that may be framed time to time by the Owner/Promoter.

c) Common utilities of the said Township required under the Development Rules of **TP** such as township roads, drainage, sewage treatment plant, solid waste management, storm water system, etc. as indicatively enlisted in **Annexure 'E-2'**, hereinafter referred to as the said '**TOWNSHIP UTILITIES'** shall be owned by the Owner/Promoter and TMA will be maintained out of common contribution received from said society/ entities/ unit Purchasers in the said **TP**. The Purchaser/ Allottee herein on payment of **TMA** charges described herein will be entitled to use thereof and as per the rules and regulations that may be framed time to time by the Owner /Promoter.

AND WHEREAS said Township Amenities and the said Township utilities shallcollectively be referred to as said **'OVERALL TOWNSHIP AMENITIES'**.

a) The Parties hereto agree that those, Amenities & utilities not specifically mentioned in Annexure E1 and E2 as overall Township Amenities which are need to be maintained out of common contribution received from Said society/apex Body/ Fedration/said entities, unit Purchasers in the said **TP** shall be treated as said Overall Township Amenities and those facilities and amenities which are paid shall be treated as said Optional Facilities.

b) The Overall Township Amenities shall vest in the Owner/Promoter and/or to its assigns. The said Purchaser herein or the said Society shall not be entitled to claim any right, title or interest therein

c) The said Overall Township Amenities shall be maintained by the Owner/Promoter or its assignees. The Owner/Promoter or its assignees shall be entitled to delegate or assign the said maintenance work or parts thereof to any other person/s on such

terms and for such consideration as the Owner/Promoter at its discretion as may think proper. Such Owner/Promoter or its assignees and/or other person/s is/are who has appointed for said maintenance work of overall township amenities hereinafter collectively called as said **'TOWNSHIP MAINTENANCE AGENCY'** – for short **'TMA'** and the said Overall Township Amenities shall be maintained by the **TMA** out of collection of maintenance charges from different entities of the said **TP**, such charges herein after referred to as the said **Township maintenance charges** in short- **TMC**

viii) the **'Owner-Operator'** of the said Optional Facilities shall be entitled to frame rules for operation and utilization of said facilities and shall be entitled to charge separate fees as applicable from time to time to the Purchasers, and such 'Owner-Operator' shall be entitled to make the same available to any third parties. Entitlement of the Purchaser to the use of the said Optional Facilities is voluntary and he is not entitled to be obliged by the Owner/Operator to render the services in the said Optional facilities and allow the use thereof merely for the reason of his purchasing the said Sector/Bungalow plot in the said **TP**. In case of non-payment or non- observance of the Rules, the owner/operator shall be entitled to discontinue the service to the Purchaser and prevent use of the Optional Facilities.

ix) the amenities of the said **"Kaleidoscope R5 -Misty Greens - phase 3-A,B &C"** will be as indicatively enlisted in **Annexure 'F',** hereinafter referred to as the said **"Kaleidoscope R5 -Misty Greens - phase 3-A,B&C"** Amenities**'** and the same shall be owned by the said Society, The routine upkeep of such **"Kaleidoscope R5 -Misty Greens - phase 3-"** Project Amenities will be out of common funds collected from purchaser/s of the Bungalow plots/bungalows/flats/units/tenements before the possession or anytime thereafter and any repairs, replacement, renovation, change or otherwise to the said **"Kaleidoscope R5 -Misty Greens - phase 3-A,B & C"** Project Amenities shall be out of additional contribution/s determined by the said society and payable by the purchaser/s on demand to the said society. And the amenities of the said **"Kaleidoscope R5 -Misty Greens - phase 3-A+B+C"** will be as indicatively enlisted in **Annexure 'F'**, hereinafter referred to as the said **"Kaleidoscope R5 -Misty Greens - phase 3-A+B=C" PROJECT AMENITIES'** and the same shall be owned by the Apexbody/ Society/Federation of the entities/societies formed in the **"Kaleidoscope R5 - Misty Greens - phase 3-A+B+C" Project.** The routine upkeep of such **"Kaleidoscope R5 -Misty Greens - phase 3-A+B+C**" Project Amenities will be out of common funds collected from purchaser/s of the Bungalow plots before the possession or anytime thereafter and any repairs, replacement, renovation, change or otherwise to the said **"Kaleidoscope R5 -Misty Greens - phase 3-A+B+C"** Project Amenities shall be out of additional contribution/s determined by the Apex Society/Federation of the said societies at **"Kaleidoscope R5 -Misty**

Greens - phase 3-A+B+c" Project and payable by the purchaser/s on demand to their respective society.

x) the common amenities for the project **'Kaleidoscope R4-Misty Greens- phase 1, Kaleidoscope R3-Misty Greens- phase 2** & **Kaleidoscope R5 -Misty Greens - phase 3-**' will be as indicatively enlisted in **ANNEXURE 'F-2',** hereinafter referred to as the said **'Common Amenities For The Project 'Kaleidoscope R4-Misty Greens, Kaleidoscope R3-Misty Greens- phase 2 & Kaleidoscope R5-Misty Greens phase 3** and the same shall be maintained by the said society/s (apex body), The routine upkeep of such **'Kaleidoscope R4-Misty Greens, Kaleidoscope R3-Misty Greens- phase 2 & Kaleidoscope R5-Misty Greens phase 3** Common Amenities will be out of common funds collected from purchaser/s of the Bungalow plots/bungalows/flats/units/tenements before the possession or anytime thereafter and any repairs, replacement, renovation, change or otherwise to the said '**Kaleidoscope R4-Misty Greens & Kaleidoscope R3-Misty Greens- phase2 ' & 'Kaleidoscope R5-Misty Greens phase 3'** Common Amenities shall be out of additional contribution/s determined by the said society/s and payable by the purchaser/s on demand to the said society/s. And the common amenities for the project '**Kaleidoscope R4-Misty Greens & Kaleidoscope R3-Misty Greens- phase II' & 'Kaleidoscope R5-Misty Greens phase 3'** will be as indicatively enlisted in **ANNEXURE 'F-2'** hereinafter referred to as the said '**Common Amenities for the Project/s** '**Kaleidoscope R4-Misty Gree**ns, **Kaleidoscope R3-Misty Greens- phase 2'** & '**Kaleidoscope R5-Misty Greens phase 3'**

xi) The restricted/ limited common areas and facilities, if any, reserved for specific Purchaser/s shall be used exclusively by that Purchaser/Allottee.

xii) upon the conveyance as envisaged under this Agreement, the said Society shall be entitled to own only the said "**Kaleidoscope R5 -Misty Greens - phase 3-B**" Project, the said "**Kaleidoscope R5 -Misty Greens - phase 3"** Project Amenities as per then prevailing law and right, title, interest and ownership of rest of all the land excluding Sector R-5 out of the said Township Land or parts thereof and the Overall Township Amenities shall remain with the Owner/Promoter until any local body established in respect of the said Township;

xiii) all the entities/societies including the said society in the **TP** shall promptly and without any complaint pay their respective contribution of Township Maintenance Charges to the Owner/Promoter and/or **TMA** towards the maintenance of the said Overall Township Amenities and out of common contribution collected from Purchasers by the said Society/entities

xiv) In the "Kaleidoscope R5 - Misty Greens - Phase 3," there are three sub-phases: 3(A), 3(B), and 3(C). The Owner/Promoter will form separate societies for each of these sub-phases. The members of these societies have the option to amalgamate into a single society through a resolution. If society members choose not to

amalgamate into one society, then after the completion of the last sub-phase, 3(C), the Owner/Promoter will establish an apex body or federation. The the said "**Kaleidoscope R5 -Misty Greens - phase 3-"** Project will be conveyed by the Owner/Promoter to the said apex body/Society/ entities subject to the above and other terms under this Agreement and the said terms will be part of the Deed of Conveyance of the said Society. on the Purchaser's acceptance of the scheme of development of the said "**Kaleidoscope R5 -Misty Greens - phase 3-B**" Project Land / **TP** as explained above, the Owner/Promoter has agreed to sell the said Sector/Bungalow plot to the Purchaser.

AND WHEREAS this Agreement lays down covenants on the part of the Purchaser to be observed for the common benefit of all Purchasers in the said Project, and the terms and conditions of the same shall be available for enforcement not only by the Owner/Promoter/**TMA** herein but also, as the case may be, by the purchasers of other Bungalow plots/tenements in the said Project/said society and further, the said covenants of the Purchaser shall also be binding on his heirs, nominees, executors, successors, administrators, transferees and assigns.

AND WHEREAS the Owner/Promoter has, prior to the execution hereof, as demanded by the Purchaser has given inspection to the Purchaser of all the documents of title relating to the said Township Land; copies of documents in respect of sanction of **TP** inter alia such as all Plans which are prepared by the Owner/Promoter, Architect , orders, sanctions, permissions, licenses, clearances etc issued in favour of the Owner/Promoter by various local / government / semi government bodies and associates; right of Owner/Promoter to develop the **TP**; the user manual prepared by the Owner/Promoter and all other related documents as are specified under the Real Estate (Regulation and Development) Act 2016 and the rules and regulations made thereunder and the Purchaser has satisfied himself about the title of the Owner/Promoter to the said Township Land, rights of the Owner/Promoter to develop the **TP** and to allot and sell the said Sector /Bungalow plot. The Purchaser/allottee has given specific confirmation that the responsibility of title of said project land shall be on owner/Promoter up and until proposed conveyance.

AND WHEREAS, copies of extract of Sector/Bungalow plot Form No. VII/VIIA/XII in respect of the said Township Land, copies of last Locational Clearance, Copy of last Letter of Intent are annexed herewith as **Annexure 'G',** Certificate of Title issued by Advocate competent to issue the same has been annexed herewith as **Annexure 'H'**, said N.A. Order/ Lay out Approval/ Sanction Plan, have been annexed with this Agreement as **Annexure 'I',**

AND WHEREAS while sanctioning the said plans concerned local authority and/or Government has laid down certain terms, conditions, stipulations and restrictions which are to be observed and performed by the Owner/Promoter while developing the project land and the said Sector/Bungalow plot and upon due observance and performance of which only the completion or occupancy certificate in respect of the said Sector /Bungalow plot/s shall be granted by the concerned local authority.

AND WHEREAS, prior to the execution of these presents the Purchaser/Allottee has paid to the Owner/Promoter a sum of Rs. _____/- , being 10% as part payment of the sale consideration of the Said Sector/Bungalow plot agreed to be sold by the Owner/Promoter to the Purchaser/Allottee as advance payment or Application Fee (the payment and receipt whereof the Owner/Promoter both hereby admit and acknowledge) and the Purchaser/s/Allottee/s has agreed to pay to the Owner/Promoter the balance of the sale consideration in the manner hereinafter appearing.

AND WHEREAS the Owner/Promoter has registered the said project under the provisions of the Real Estate (Regulation & Development) Act, 2016 with the Maharashtra Real Estate Regulatory Authority at Mumbai on 11/06/2024 under **Registration no. P52100066537**, the copy of Registration Certificate of Project in FORM 'C' under rule 6(a) have been annexed and marked as **Annexure 'J'** hereunder.

AND WHEREAS subject to otherwise agreed, reserved and provided herein, the Owner/Promoter has agreed to sell and the Purchaser has agreed to purchase the said Bungalow plot, and the Parties hereto therefore, have executed this Agreement to Sell, to witness the terms and conditions thereof and in compliance of Section 13 of the Real Estate (regulation and Development) Act 2016 and /or then prevailing law, as under:

NOW THIS AGREEMENT TO SELL WITNESSETH AND IT IS AGREED BY AND BETWEEN THE PARTIES AS UNDER:

1. DEFINITIONS:

The parties hereto admit and confirm the definitions of certain terms used in this agreement as follows:

1.1. **The Township Land** : Shall mean and include all those pieces of lands totally admeasuring 47 Hectares70.39 ares i.e. 477039.00 Sq. Mtrs., Mtrs.,situated at Bungalow plot Bhugaon, Taluka Mulshi, District Pune, within the registration Sub-District Taluka Mulshi, District Pune and within the limits of Gram Panchayat Bhugaon, Panchayat Samitee, Taluka Mulshi, Zilla Parishad Pune owned by the Owner/Promoter and various persons for which a layout dated 20/11/2018, for all those pieces of lands were sanctioned and issued by the Pune Metropolitan regional Development Authority (PMRDA), Pune, vide letter no. BMU/Mauje Bhugaon/S. Nos.125/5, 126/2 and others/Pr. Kr.1835/17-18 to the Owner/Promoter for the development of the said Kaleidoscope Township which lands are described and mentioned in the preamble herein above;and

1.2. **Additional Township lands:** - means and includes all those pieces and parcels of lands that may be acquired and included in the said Township Land.

1.3. **The Kaleidoscope Township Land':** shall means and includes all that township land and additional township lands together with called as the Kaleidoscope Township Land.

1.4. **Township Global FSI** Shall mean the right to claim, utilize and consume entire Floor Area Ratio/Floor Space Index (FAR/FSI), including all such buildable potential such as additional FSI, Premium FSI, TDR as may be defined, available, granted and permitted on global basis under the rules and regulations framed or which may be framed from time to time by the Government of Maharashtra

relating to the said Kaleidoscope Township Land (herein after referred as "Township Global FSI"), which is excluding the total FSI of ---------- sq. mtrs belonging to the said **"Kaleidoscope R5 -Misty Greens - phase 3-B"** Project.

1.5. **Rights of the Owner/Promoter:** shall means and includes all the primary and/or ancillary and/or supplementary and/or residuary rights, title, interest, claims, statutory and/or contractual of the Owner /Promoter in and over and/or in respect of and/or relating to the said Township Land.

1.6. **Township Project (TP)**: Shall mean and include the Kaleidoscope Township sanctioned on the township land and as may be sanctioned on the additional township land under regulations for Development of Special Townships under Sub-Section (4) of the Maharashtra Regional and Town Planning Act, 1966 (said Act) or sanctioned as per the modified / revised Regulations of 2019 for Development of Integrated Township other subsequent amendments thereunder and/or such other statutes and rules in respect of Townships.

1.7. **The** "Kaleidoscope R5 -Misty Greens - phase 3"**:** means and includes, the total proposed development of Sector R5 Misty Greens - phase 3 including sub-phases: 3(A), 3(B), and 3C currently admeasuring to a total area of 66956.09 sq.mtrs, consisting of residential Sector/Plots as per the sanctioned layout plan 3A,3B &3C including garden, Open space, utility & internal road) carved out of the land.This land subject to change as per modified PLU from time to time.

1.8. **The** "Kaleidoscope R5 -Misty Greens - phase 3-B"**:** means and includes, the Owner/Promoter has propose development of Sector/Plots bearing distinct numbers and types consisting of residential Sector/Plots as per the sanctioned layout plan on the Sector No. **Kaleidoscope R5 -Misty Greens - phase 3 B** admeasuring 11116.08 Sq. Mtrs., carved out of the land bearing Survey nos. 146/1, 146/3, 146/5, 146/6, 148, 149/1, 149/2, 151/1, 151/2, 152/1, 152/2, 154/1, 154/2, 154/4, 154/6, 154/7, 154/8, 154/10 & 154/11 which is included in the said Layout and the Plots of the said Sector No. **R5 -Misty Greens - phase 3 B** to be known as **"Kaleidoscope R5 - Misty Greens - phase 3-B" PROJECT' or the Said Project**.

1.9. "Kaleidoscope R5 - Misty Greens - Phase 3" – ENTIRE PROJECT LAND:

The Entire project land comprises **66,956.09 square meters** within **Sector No. R-5, Phase 3**, which is further divided into three sub-phases: **3(A), 3(B), and 3(C)**. This land has been carved out of the present sanctioned layout and includes residential sectors/plots as per the approved layout plans for **3A and 3B**, with **Phase 3C proposed for future development**, subject to applicable approvals.The project also includes designated gardens, open spaces, utility spaces, and internal roads. The land is more specifically described in **Schedule-II** and shall be collectively referred to in subsequent sections as **"Kaleidoscope R5 - Misty Greens - Phase 3 – Entire Project Land"** or **"Said Entire Project Land."** This land subject to change as per modified PLU from time to time.

1.9. **"Kaleidoscope R5 -Misty Greens - phase 3 B"- PROJECT LAND**: All those pieces of plot of land in Sector R-5 PHASE 3B admeasuring 11116.08 Sq. Mtrs., carved out of land bearing Survey nos. 146/1 & others, included in the said Layout to be used for the residential purpose as per the sanctioned layout plans. The said Sector R-5 **Misty Greens - phase 3B** land is more particularly described in the Schedule-III written hereunder and hereinafter referred to as "Kaleidoscope R5 - Misty Greens - phase 3-B" **PROJECT LAND' or 'said PROJECT LAND'.**

1.10. **The 'Unit'**: means a structure of residential or commercial premises consisting of flats, bungalows, shops, offices, utility/dry balcony spaces, adjacent/formed terraces, parking/garage areas, guest rooms etc. constructed in any project on the said Kaleidoscope Township Land.

1.11. **The said Plot**: means and includes the residential Plot as per the sanction layout Plan out of the said Project land, which is agreed to be purchased by the Purchaser under this agreement.

1.12. **Township Maintenance Agency'('TMA')**: the Owner/Promoter or the Owner/Promoter shall be entitled to delegate or assign the said maintenance work of Overall Township Amenities or parts thereof to any other person/s on such terms and for such consideration as the Owner/Promoter at its discretion may think proper, said Owner/Promoter and such other person/s for the maintenance work of Overall Township Amenities to be provided by the Owner/Promoter to

the **TP** or parts thereof on such terms.

1.13. **Overall Township Amenities**:- Amenities as indicatively enlisted in **Annexure 'E-1'**, (said **Township Amenities**) and Common utilities of the said Township required under the Development Rules of **TP** such as township roads, drainage, sewage treatment plant, solid waste management, storm water system, as indicatively enlisted in **Annexure 'E-2'**, (said **Township Utilities**),herein the said Township Amenities and the said Township utilities shall collectively be referred to as said **'OVERALL TOWNSHIP AMENITIES'**.

1.14. **Township Maintenance Charges (TMC)':** means and includes contribution collected from all entities in the **TP** towards the maintenance of the said Overall Township Amenities by the Owner/ Promoter or the **TMA.**

1.15. **Optional Facilities: -** Means Paid Amenities /Facilities as indicatively enlisted in **ANNEXURE 'D',** hereinafter referred to as the said **'OPTIONAL FACILITIES'.** They shall be owned and managed by the Owner/Promoter. The Owner/ Promoter shall be entitled to sell, convey, transfer and give it to operate of the Paid Amenities for consideration or otherwise, to any other person, company or a Society corporate. Hereinafter such other person, company or a Society corporate called as said 'Owner-Operator'.

1.16. **Project amenities:-** Amenities as indicatively enlisted in **Annexure 'F'**, (said Project/ **Sector Amenities** R-5 **Misty Greens - phase 3A, 3B & 3C**) Project utilities of the said project required under the Development Rules of **TP** such as sewage treatment plant, sub-station/L T room, solid waste management, storm water system, as indicatively enlisted in **Annexure 'F'**,

1.17. **Sector Amenities for Misty Greens R5- Phase 3 A-B-C:-** For **the Project Kaleidoscope R5 Misty Greens - Phase 3 (A-B-C Together)** as indicatively enlisted in **ANNEXURE 'F'**, (said **Sector Amenities for Misty Greens R5-Phase 3**) herein the said Sector Amenities and the said Sector Amenities for **Kaleidoscope R5-Misty Greens phase 3 A,B & C** shall be referred to as said **'PROJECT/ SECTOR AMENITIES** For **the projects Kaleidoscope R5-Misty Greens phase 3 A,B & C,**

1.18. **Common Amenities:-** For **the Project Kaleidoscope Misty Greens - Phase 1, 2**

& 3 (OR Misty Greens R5 A-B-C Together) as indicatively enlisted in **ANNEXURE 'F-1** (said **Common Amenities**) herein the said Common project Amenities and the said Common Project Amenities for **Kaleidoscope R4 -Misty Greens, Kaleidoscope R3-Misty Greens& Kaleidoscope R5-Misty Greens**shall be referred to as said **'COMMON AMENITIES** For **the projects Kaleidoscope R4-Misty Greens** & **Kaleidoscope R3-Misty Greens- phase II'& Kaleidoscope R5-Misty Greens.**

1.19. **'Kaleidoscope R5 -Misty Greens - phase 3-B' Project Maintenance Charges**:- will comprises of share of said Project maintenance charges for maintaining utilities and facilities in "Kaleidoscope R5 -Misty Greens - phase 3-B" to be contributed by members of various units in said Project.

2. AGREEMENT TO SELL AND CONSIDERATION:

2.1. The Owner/Promoter shall develop the residential plots project on the said '"Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land (in Sector R-5) after getting the required layout (PLU) and F.S.I. sanctioned. The Purchaser / Allottee have expressly given no objection and permission to the Promoter / Owner to sanction a balance FSI if any for the said Sector R-5-phsae 3B Project land. The Owner / Promoter is not required to take any separate No Objection Certificate from Purchaser / Allottee for further sanction of balance FSI and transition to the Integrated Township Policy 2019.

2.2. The Purchaser/Allottee hereby agrees to Purchase from Owner/Promoter and the Owner/Promoter agrees to sell, transfer and otherwise convey in the manner hereinafter mentioned, the said Plot bearing No. _____, having area admeasuring _____ Sq. Mtrs., in the "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and which is more particularly described in the **SCHEDULE-IV** written hereunder, and delineated in Red color in the Layout Plan as **ANNEXURE 'C'** annexed herewith, unto and in favour of the Purchaser, subject to the fulfillment of the terms and conditions specified herein and the Purchaser agrees to acquire and purchase the same from the Owner/Promoter, for and at a price consideration of Rs. _____/- *(*Rupees _____only), including proportionate price

of the common areas and facilities, hereinafter referred to as the said **'AGREEMENT VALUE',** and other contributions to be paid by the Purchaser to the Owner/Promoter, as hereinafter mentioned.

Provided that the aforesaid Agreement value consist of Rs. _____/- *(*Rupees _____only) towards the land /Plot and Rs. _____/- *(*Rupees _____only) towards the development charges of the land/plot. The purchaser agrees that Owner/Promoter shall also be recovering GST as may be applicable on service charge as offered.

2.3. The Purchaser/Allottee/s agrees and understands that timely payment towards purchase of the said Plot as per payment plan/schedule hereto is the essence of the Agreement. The Purchaser/Allottee has paid on or before execution of this agreement a sum of Rs. _____/- as advance payment or application fee, and the Purchaser/Allottee has agreed to pay to the Owner/Promoter the balance of sale consideration in the manner hereinafter appearing as **ANNEXURE 'K'** annexed herewith.

2.4. The above Agreement Value includes Taxes (consisting of tax paid or payable by the Owner/Promoter by way of Value Added Tax, Service Tax, GST and Cess or any other similar taxes which may be levied, in connection with the construction of and carrying out the Project payable by the Owner/Promoter) up to the date of handing over the possession of the said Plot and the above consideration is escalation-free, save and except escalations/increases, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority Local Bodies/Government from time to time. The Owner/Promoter undertakes and agrees that while raising a demand on the Purchaser/s/Allottee/s for increase in development charges, cost, or levies imposed by the competent authorities etc., the Owner/Promoter shall enclose the said notification/ order/rule/regulation published/ issued in that behalf to that effect along with the demand letter being issued to the Purchaser/s/Allottee/s, which shall only be applicable on subsequent payments.

3. PAYMENT OF CONSIDERATION:

3.1. The Allottee has paid on or before execution of this agreement a sum of Rs _____ (Rupees _____ only) (not exceeding 10% of the total consideration) as advance payment or application fee and hereby agrees to pay to that Promoter the balance amount of Rs ..... (Rupees .....) and shall deposited in RERA Designated Collection Bank Account, _____Bank,_____ Branch having IFS Code, _____ situated at _____ . in addition to the above bank account, I/ we have opened in the same bank RERA Designed Separate Bank Account and RERA Designated Transaction Bank Account having Account No. _____ and _____ respectively..

3.2. The Owner/Promoter will issue an acknowledgement receipt to the Purchaser, subject to realization of the said cheques. The Owner/Promoter shall maintain a separate account in respect of sums received by the Owner/Promoter from the Purchaser/Allottee as advance or deposit, sums received on account of the share capital for the promotion of the Co-operative Society or association or Company or towards the out goings, legal charges and shall utilize the amounts only for the purposes for which they have been received.

3.3. In case if any bank charges are debited to the account of the Owner/Promoter, the net amount shall be deemed as payments by the Purchaser.

3.4. The time for payment of the installments of the said Agreement Value as provided in **ANNEXURE -K'** shall be the **ESSENCE OF CONTRACT.**

3.5. The Purchaser/Allotees/s authorizes the Owner/Promoter to adjust /appropriate all payments made by him /her/them under any head(s) of dues against lawful outstanding, if any, in his / her/their name as the Owner/Promoter may in its sole discretion deem fit and the Purchaser/Allottee undertakes not to object/demand/direct the Owner/Promoter to adjust his/her/their payments in any manner.

3.6. If the Owner/Promoter fails to abide by the time schedule for completing the said project and handing over the Said Plot to the Purchaser/Allottee, the Promoter agrees to pay to the Purchaser/Allottee, who does not intend to withdraw from the

said project, interest as per state bank of India highest Marginal cost of lending rate plus 2% per annum, on all the amounts paid by the Purchaser/Allottee, for every month of delay, till the handing over of the possession. The Purchaser/Allottee agrees to pay to the Promoter, interest as per state bank of India highest Marginal cost of lending rate plus 2% per annum, for the breach arising out of all the delayed payments of the installments, which become due and payable by the Purchaser/Allottee to the Owner/Promoter under the terms of this Agreement from the date the said amount is payable by the Purchaser/Allottee(s) to the Owner/Promoter.

3.7. Without prejudice to the right of Owner/Promoter to charge interest in terms of above mentioned clause, on the Purchaser/Allottee/s committing default in payment on due date of any amount due and payable by the Purchaser/Allottee/s to the Owner/Promoter under this Agreement (including his/her proportionate share of taxes levied by concerned local authority and other outgoings) and on the Purchaser/Allottee/s committing three defaults of payment of installments, the Owner/Promoter shall at his own option, may terminate this Agreement:

Provided that, Owner/Promoter shall give notice of fifteen days in writing to the Purchaser/ Allottee/s, by Registered Post AD at the address provided by the Purchaser/Allottee/s and mail at the e-mail address provided by the Purchaser/Allottee/s, of his/her/their intention to terminate this Agreement and of the specific breach or breaches of terms and conditions in respect of which it is intended to terminate the Agreement. If the Purchaser/Allottee/s fails to rectify the breach or breaches mentioned by the Owner/Promoter within the period of notice then at the end of such notice period, the Owner/Promoter shall be entitled to terminate this Agreement. Provided further that upon termination of this Agreement as aforesaid, the Owner/Promoter shall refund the amount till then received from the Purchaser/Allottee/s thereon within a period of 30 days, interest accumlated on Gst..by deducting; (i) an amount of Rs. 1,00,000/- (Rupees One Lacs Only) towards liquidated damages and/or cancellation in addition to any interest (as specified in the Rules of the said Act) payable on outstanding amount overdue from the Purchaser/Allottee/s, (ii) the stamp duty, registration charges etc., and (iii) the amount of Service Tax, VAT, GST, LBT or any other taxes

charged by the Owner/Promoter to the Purchaser/Allottee/s

3.7 (i) Till the date of such termination and the Owner/Promoter herein shall be entitled to deal with the said Plot with any prospective buyer. Delay in issuance of any reminder/s or notice/s from the Owner/Promoter shall not be considered as waiver of Owner/Promoter's absolute right to terminate this Agreement.

3.8. The Total Price is escalation-free, save and except escalations/increases, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority Local Bodies/Government from time to time. The Owner/Promoter undertakes and agrees that while raising a demand on the Purchaser/Allottee for increase in development charges, cost, or levies imposed by the competent authorities etc., the Owner/ Promoter shall enclose the said notification/ order/rule/regulation published/issued in that behalf to that effect along with the demand letter being issued to the Purchaser/Allottee, which shall only be applicable on subsequent payments. The Owner/Promoter may charge the Purchaser/Allottee/s separately for any upgradation/changes specifically requested to approve by the Purchaser/Allottee in fitting, fixtures and specification and any other facilities which have been agreed upon herein or as shown in the website of the registered authority.

3.9. The Owner/Promoter herein on due date or on reaching aforesaid milestone/stage shall intimate the amount payable as stated above in writing or by email to the Purchaser/Allottee/s and the Allottee shall make payment of such due amount to the Owner/Promoter within seven days from date of receiving such intimation. The Purchaser/Allottee herein specifically agrees that he/she/they shall pay the aforesaid amount along with the service tax, VAT, GST and any such other Taxes without any delay along with each installment.

4. POSSESSION OF THE SAID PLOT

The Promoter shall give possession of the said plot to the Allottee on or before..... 31st day of ..... January 2030 . If the Promoter fails or neglects to give possession of the said plot to the Allottee on account of reasons beyond his control and of his agents by the aforesaid date then the Promoter shall be liable on demand to refund to the Allottee the amounts already received by him

in respect of the said plot with interest at the same rate as may mentioned in the clause 21.1.1 herein above from the date the Promoter received the sum till the date the amounts and interest thereon is repaid.Provided that the Owner/Promoter shall be entitled to reasonable extension of time as agreed by and between the Purchaser/Allottee/s and the Owner/Promoter for giving possession of the Plot on the aforesaid date, and the same shall not include the period of extension given by the Authority for registration. Further if the completion of project in which the Plot is to be situated is delayed on account of –

(i) war, civil commotion or act of God.

(ii) any notice, order, rule, notification of the Government and/or other public or competent authority/court.

4.1. SCHEDULE FOR POSSESSION OF THE SECTOR AMENITIES:-The Owner/Promoter herein is developing the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project which consists of Plots having project amenities as enlisted hereinafter the construction / development of the said project amenities for the Project "Kaleidoscope R5 -Misty Greens - phase 3-B" will be completed in due course only after completion of development of entire project. The Owner/Promoter assures to hand over possession of the said "Kaleidoscope R5 - Misty Greens - phase 3-A+B+C" Sector/ Project amenities enlisted in **Annexure** "F" on or before 31st January 2030.

The Purchaser/Allottee/s herein agree and convey that he/she/they shall not be entitled to refuse to take the possession of the said Plot on the ground of non-completion of aforesaid Project amenities.

4.2. The Purchaser/Allottee/s agrees not to raise any objection and agrees to make payment of all instalments as per the work progress even if the Owner/Promoter completes the said Plot substantially earlier than the aforesaid possession handover date

4.3. PROCEDURE FOR TAKING POSSESSION:- The Owner/Promoter, upon completion of layout development shall offer in writing to the Purchaser/Allottee/s intimating that, the said Plot is ready for construction and occupation. The Purchaser/Allottee/s herein shall inspect the said Plot in all respects to confirm that the same is in accordance with the terms and conditions of this Agreement,

complete the payment of total consideration and dues and taxes thereon to the Owner/Promoter as per terms and conditions of this Agreement and take the possession of the said Plot within 15 days' from the date of written intimation issued by the Owner/Promoter to the Purchaser/Allottee herein. The Owner/Promoter agrees and undertakes to indemnify the Purchaser/Allottee/s in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Owner/Promoter. The Purchaser/Allottee/s agrees to pay the maintenance charges as determined by the Owner/Promoter/Body of the Plot Purchaser/Allottee/s/ Association of Allottees, as the case may be.

4.4. It shall be expressly agreed that wherever it is the responsibility of the Purchaser/Allottee to apply and get necessary services the same shall not be undertaken by the Owner/ Promoter and the Purchaser/Allottee shall be solely responsible for the same.

4.5. Upon receiving a written intimation from the Owner/Promoter as stated hereinabove, the Purchaser/Allottee/s shall take possession of the Plot from the Owner/ Promoter by executing necessary indemnities, undertakings, possession letter/agreement and such other documentation as prescribed in this Agreement, and the Owner/Promoter shall give possession of the Plot to the Purchaser/Allottee/s. In case the Purchaser/Allottee/s fails or commits delay in taking possession of said Plot within the time provided hereinabove, such Purchaser/Allottee/s shall be liable for payment of common maintenance charges as applicable, revenue/N.A. tax, electricity charges and any other expenses and outgoings in respect of the said Plot and the Owner/Promoter shall not be liable for the maintenance of the said Plot.

4.6. After handing over physical possession of the said Plot to the Purchaser/Allottee/s, it shall be the responsibility of the Owner/Promoter to handover the necessary documents and plans, including common areas, to the association of the Purchaser/Allottee/s or the competent authority, as the case may be, as per the local laws.

4.7. That the Purchaser/Allottee/s has/have given his/her/their specific confirmation therein that the responsibility of title of the said Project Land be on the Owner/Promoter up and until the conveyance of the said the said Project Land / the

said Plots.

4.8. Except for occurrence of the events stating herein above, if the Owner/Promoter fails to complete or is unable to give possession of the Plot (i) in accordance with the terms of this Agreement, duly completed by the date specified herein; or (ii) due to discontinuance of his business as a Developer/Promoter on account of suspension or revocation of the registration under the said Act; or for any other reason; the Owner/Promoter shall be liable, on demand to the Purchaser/Allottee/s, in case the Purchaser/Allottee wishes to withdraw from the Project, without prejudice to any other remedy available, to return the total consideration excluding taxes received by him in respect of the Plot, with the interest as specified in the Rules of the said Act within 30 days including compensation in the manner as provided under the said Act.

Provided that where if the Purchaser/Allottee/s does not intend to withdraw from the said Project, the Owner/Promoter shall pay the Purchaser/Allottee/s interest as specified in the Rules of the said Act on all amounts paid by the Purchaser/Allottee/s, for every month of delay, till handing over of the possession of the said Plot.

Notwithstanding anything contained anywhere in this Agreement, under no circumstances the Purchaser/Allottee shall be entitled to possession of the said Plot, unless the Purchaser/Allottee shall have paid and the Owner/Promoter have received the entire amount of consideration, interest on delayed payment, contributions, advance maintenance charges of TMC and society, and other dues, if any (payable up to the date of possession) as agreed to herein, to the Owner/Promoter. The Purchaser/Allottee shall be liable and responsible to pay the taxes, maintenance charges including TMC and society common contribution, local body tax and all other outgoings in respect of the said Plot from the date of notice of the Owner/Promoter offering possession or the actual date of possession whichever is earlier.

5. RESPONSIBILITIES OF THE OWNER/PROMOTER:

5.1. About formation of Society and Conveyance:

The Conveyance of title as envisaged under the Real Estate (regulation and Development) Act 2016 in respect of the said Plot and the said “Kaleidoscope R5

-Misty Greens - phase 3-B" Project land shall be as under:

5.1.1 The Owner/Promoter hereby clarifies that the approved lay out is an interim layout and The Owner/Promoter reserves the right and proposes to further amend change or revise such layout from time to time so as to utilize/ consume in the part Kaleidoscope R5 -Misty Greens - phase 3A, 3B, 3C out of the said Sector R5 and in accordance with the plans as may ultimately be approved and/or amended and sanctioned by the PMRDA and or other bodies and or concerned authorities but without altering the location, area and project amenities of the said project.

5.1.2 The Owner/Promoter shall form a Co-operative Housing Society classified as a "Co-operative Housing Society"(Required few changes) on the "Kaleidoscope R5 - Misty Greens - Phase 3(B) " project land. Additionally, the Owner/Promoter shall also form a Co-operative Housing Society on the "Kaleidoscope R5 - Misty Greens - Phase 3(A & C)" project land. Society members have the choice to amalgamate into one society. If the society members are not willing to amalgamate all three societies into one, then the Owner/Promoter will form an apex body or federation of these societies.

5.1.3 Considering the Owner/Promoter herein is carrying on the construction/ development on the said Kaleidoscope Township Project land in phases as aforesaid and further to have the maintenance of the said project and Overall Township Amenities, Project amenities, common amenities and facilities enlisted in Annexure E-1, E-2, F and F-1, respectively more conveniently, there will be one or more entities/Co-operative societies and/or Apex Body/Federation and/or limited company or as such may be formed under prevailing local laws as may be applicable to the said Kaleidoscope Township Project, as may deem fit by the Owner/Promoter.

5.1.4 The Owner/Promoter shall form a Co-operative Housing Society classified as "Tenant Ownership Housing Society" on the said "Kaleidoscope R5 -Misty Greens - phase 3(A+B+C) Project land within three months from the date 51% of the plots are booked and all Plot Purchasers in said "Kaleidoscope R5 -Misty Greens - phase 3, said Project land has become member of such society, which is hereinafter referred to as 'the said society'. The Society which had formed and registered in respect of the Plots including the said Plot shall be known and called

as **'KALEIDOSCOPE R5 MISTY GREENS PHASE_3 CO-OPERATIVE HOUSING SOCIETY LTD'**. The Owner/Promoter shall have liberty to put name board of Owner/ Promoter in vicinity/on the said Project/Township and shall also have liberty to decide any other name for the said Society/Project. The Purchaser or other Plot holders in the said Society or its successors are not entitled to change the aforesaid names and remove or alter name board of the Owner/ Promoter in any circumstances. The Purchaser undertakes to become member of said Society and shall extend full co-operation to Owner/ Promoter in formation of said society by signing various applications, paper and documents or otherwise sign and return to the Owner/Promoter within seven days of the same being forwarded by the Owner/Promoter to the Purchaser/Allottee, so as to enable the Owner/Promoter to register the common organization of Purchaser/Allottee. No objection shall be taken by the Purchaser/Allottee if any; changes or modifications are made in the draft bye-laws, or the Memorandum and/or Articles of Association, as may be required by the Registrar of Co-operative Societies or the Registrar of Companies, as the case may be, or any other Competent Authority. This condition is essential condition of this Agreement.

5.1.5 In all respect after completion of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and further to have maintenance Overall Township Amenities, common amenities and facilities enlisted in Annexure E-1, E-2 and F, F-1, respectively and Open spaces, Internal roads and otherwise in said "Kaleidoscope R5 -Misty Greens - phase 3" Project more conveniently, there will be one Apex Body/Federation/ Limited company or as such may be formed by Owner / Promoter as may be applicable to said Kaleidoscope Township.

5.1.6 The Owner/Promoter shall, within three months from last Completion certificate contains entire sector/plot in the said project and simulation in registration of the Society as aforesaid, cause to be transferred to the Society all the right, title and the interest of the Vendor/ Original Owner/Promoter and/or the owners in said sector/bungalow plot is situated.

5.1.7 The Developer will make application within two months after getting Completion certificate of the last project/building/tower/ Plots/bungalows in the Township Project to form an Apex Body/Federation of the various

flat/Plot/bungalow/unit/tenement owners entitles in said Kaleidoscope Township Project. The Owner/Promoter shall, within three months from registration of such Federation/Apex Body, as aforesaid, cause to be transferred to the Federation/Apex Body all the project land and amenities in the said Kaleidoscope Township project subject to more particularly described herein after.

5.1.8 If within a period of five years from the date of handing over the Apartment to the Allottee, the Allottee brings to the notice of the Promoter any structural defect in the Apartment or the building in which the Apartment are situated or any defects on account of workmanship, quality or provision of service, then, wherever possible such defects shall be rectified by the Promoter at his own cost and in case it is not possible to rectify such defects, then the Allottee shall be entitled to receive from the Promoter, compensation for such defect in the manner as provided under the Act.

6. CONVEYANCE OF THE SAID PLOT:-

6.1 The Owner/Promoter, on receipt of entire amount of the Price of the said Plot under the Agreement from the Purchaser(s)/Allottee(s), shall execute a conveyance deed of the said “Kaleidoscope R5 -Misty Greens - phase 3- B” of the Project (subject to his right to dispose of the remaining unsold Plot/s, if any) upon said Project land within 3 months from the date of Completion of the said Project. However, in case the Purchaser(s)/Allottee(s) fails to deposit the stamp duty, registration charges and all other incidental and legal expenses, outstanding maintenance amount if any etc. so demanded within the period mentioned in the demand letter, the Purchaser(s)/Allottee(s) authorizes the Owner/Promoter to withhold registration of the conveyance deed in his/her/their favour till full and final settlement of all dues and stamp duty and registration charges to the Owner/Promoter is made by the Purchaser(s)/Allottee(s) absolute and unconditional consent to this scheme of development and conveyance.

6.2 In the "Kaleidoscope R5 - Misty Greens - Phase 3," there are three sub-phases: 3(A), 3(B), and 3(C). The Owner/Promoter will form separate societies for each of these sub-phases. The members of these societies have the option to amalgamate into a single society through a resolution. If society members choose not to amalgamate into one society, then after the completion of the last sub-phase, 3(C), the Owner/Promoter will establish an apex body or federation. The

Owner/Promoter will be responsible for conveying the entire project land to this apex body or federation.

6.3 The above said deed of conveyance to be executed unto and in favour of the said Society/ apex body or federation. shall incorporate wherever relevant and necessary, the terms and conditions of this Agreement, terms and conditions imposed by the Government while granting various sanctions and permissions; and policies, bye-laws, rules and regulations of the **TP**, framed by the said **TMA.** The Owner/Promoter shall be responsible to prepare the draft of the Deed of Conveyance. The Owner/Promoter shall be liable and responsible to convey only the concerned part of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project land to the said Society, in which the said Plot herein agreed to be purchased by the Purchaser is situated. The ownership of the "Kaleidoscope R5 - Misty Greens - phase 3-B" project land, common amenities, and open spaces shall retained by Owner/Promoter until it is conveyed to the said Apex body or Federation, as recorded herein above. It is further clarified that the Overall Township Amenities including common/ internal roads, artery roads, green spaces, public utility spaces, and remaining open spaces etc. shall not be transferred to the said society or as case may be, but shall be retained and manage and maintain by the Owner/Promoter. The said Owner/Promoter shall be entitled to own, retain, manage and maintain the Overall Township amenities and shall be entitled to convey, transfer Overall Township amenities, including internal road to any urban local body as may be formed in future for purpose of maintenance of this township by government.

6.4 The Purchaser or the said Society shall not have any right, title or interest of any kind on the property to be conveyed to the other entities in the Kaleidoscope Township Land/ **TP**.

6.5 The purchaser confirms that he/she/they has/have read and accepted certain specific bye laws which are in conformity with the objective of township and which would be incorporated as additional bye laws and same shall be read with model bye laws provided under societies Act of proposed society. By this agreement to indenture the Purchaser has given his/her/their No Objection and

clearance to Owner/Promoter to change or modify draft bye laws of the said Society as may be required by Owner/Promoter or concerned authority from time to time. The Purchaser either individually or otherwise howsoever shall not be entitled to raise any objection/s of whatsoever nature in this behalf. The Purchaser shall observe all the rules and regulations of bye laws of the said Society, including the amendments made there to from time to time.

6.6 All the expenses relating to the conveyance in favour of the said Society or Apex Society/Federation such as stamp duty, registration fees, legal fees and other incidentals, if any, other than stamp duty and registration charges paid for these present, shall be borne and paid by all the Purchasers in proportion to the sharing areas of their respective Plots.

6.7 The Owner/Promoter hereby agrees that they shall, before the completion date of the said project ensure that the title of Plot is free from all encumbrances and is marketable and in any event before execution of a conveyance to the society/ Apex body/ federation make full and true disclosure of the nature of his title to the said project Land as well as encumbrances, if any, including any right, title, interest or claim of any party in or over the said project Land / Building/s and shall as far as practicable, ensure that the said project Land / Building/s are free from all encumbrances and that the Owners / Promoter have absolute, clear and marketable title to the said project Land so as to enable him to convey the same to the ultimate Purchaser/Allottee/s.

6.8 NO RIGHTS TO DEMAND SUB-DIVISION: The Purchaser/s of the Plot/Plots agreed to be sold hereunder and all the other purchasers of Plots in the said project shall not have any right to make sub-division of the Plot and always subject to the applicable rules, regulations and bye-laws.

6.9 Purchasers shall not have individual right, title, claim or interest in respect of the amenity spaces, open spaces and the said entire Land and the rights of the Purchaser/s are confined only to the Plot/Plot hereby agreed to be sold, it being expressly agreed subject to the applicable rules, regulations and bye-laws.

7. DISCLOSER AND WARRANTIES BY THE PROMOTER:-

7.1 The Owner/Promoter is absolutely entitled to develop the said Project and the said project land is free from encumbrances except the Mortgage deed dated 23.07.2021 bearing no. 10530/2021, in favour of Vistra ITCL (India) Ltd. office at plot no 22 'G'block, Bandra (East) Mumbai, Hence the Owner/Promoter if specifically required by the Purchaser may obtain requisite NOC of Vistra ITCL (India) Ltd. The Owner/Promoter reserves right to change the charge in favour of any other financial institution by vacating charge of Vistra ITCL (India) Ltd. office at plot no 22 'G'block, Bandra (East) Mumbai, and in such situation provision of this clause shall mutatis mutandis apply to such other financial institution.

7.2 The Owner/Promoter has made full and true disclosure of the Title of the said project land as well as encumbrances, if any, known to the Owner/Promoter in the Title report of the Advocate. The Owner/Promoter has also disclosed to the Purchaser/Allottee/s nature of its right, title interest or right to develop the project land, and also given inspection of all documents to the Purchaser/Allottee/s as required by the law. The Purchaser/Allotte/s having acquainted himself /herself/themselves with all facts and right of the Owner/ Promoter and after satisfaction of the same has entered into this agreement.

7.3 The Owner/Promoter shall develop the said Plot on the said "Kaleidoscope R5 - Misty Greens - phase 3-B" Project Land in accordance with the plans and specifications approved by the concerned local authority and which have been seen and approved by the Purchaser and enlisted in the **Annexure 'C' and 'L'** respectively, with only such variations and modifications as may be required by the concerned local authority/ the government to be made in them or any of them. Provided that the Promoter shall have to obtain prior consent in writing of the Allottee in respect of variations or modifications which may adversely affect the Apartment of the Allottee except any alteration or addition required by any Government authorities or due to change in law.

7.4 The Owner/Promoter hereby represents and warrants to the Purchaser(s)/Allottee(s) as follows:

7.4.1. The Owner/Promoter has clear and marketable title with respect to the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land/Township Land; as

declared in the title certificate annexed to this agreement in **Annexure 'H'** and has the requisite rights to carry out development upon the said "Kaleidoscope R5 - Misty Greens - phase 3-B**"**Project Land/Township Land and also has actual, physical and legal possession of the said "Kaleidoscope R5 -Misty Greens - phase 3-B**"**Project Land/Township Land for the implementation of the said "Kaleidoscope R5 -Misty Greens - phase 3-B**"**Project;

7.4.2. The Owner/Promoter has lawful rights and requisite approvals from the competent Authorities to carry out development of the said Project and shall obtain requisite approvals from time to time to complete the development of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project;

7.4.3. There are no encumbrances upon the said Project except those disclosed in the title report/certificate;

7.4.4. There are no litigations pending before any Court of law with respect to the said Project except those disclosed in the title report/certificate issued by the Advocate of the Owner/ Promoter;

7.4.5. All Drawing, Sale Plans, other drawing are as given to the Owner/Promoter by the appointed Architect, other Consultants, the Owner/Promoter has thus disclosed the same to the Purchaser/Allottee and the Purchaser/ Allottee is aware that Professional liabilities have been undertaken by them individually with Owner/Promoter which shall prevail on these consultants individually or cumulatively if there is any loss / harm is caused to the Purchaser/Alloteee and based on these said details of the Drawing and the calculations and areas shown, the Purchaser/Allottee has agreed to take the said Plot.

7.4.6. All approvals, licenses and permits issued by the competent authorities with respect to the said Project, said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land and the Plots are valid and subsisting and have been obtained by following due process of law. Further, all approvals, licenses and permits to be issued by the competent authorities with respect to the said Project, said "Kaleidoscope R5 -Misty Greens - phase 3-B**"**Project Land and the Plots shall be obtained by following due process of law and the Owner/Promoter has been and shall, at all times, remain to be in compliance with all applicable laws in relation to the said Project, "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land,

Plots and common areas;

7.4.7. The Owner/Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Purchaser/Allottee created herein, may prejudicially be affected;

7.4.8. The Owner/Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any third person or party with respect to the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project Land, including the said Plot which will, in any manner, affect the rights of Purchaser/Allottee under this Agreement;

7.4.9. The Owner/Promoter confirms that the Owner/Promoter is not restricted in any manner whatsoever from selling the said Plot to the Purchaser/Allottee in the manner contemplated in this Agreement;

7.4.10. At the time of execution of the conveyance deed of all plots in the said Project layout to the society of Purchaser/allottee/s, the Owner/Promoter shall handover lawful, vacant, peaceful, physical possession of the common areas of the project tothe federation/apex body/s of the entities/societies;

7.4.11. The Owner/Promoter has duly paid and shall continue to pay and discharge undisputed governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the said project to the competent Authorities till the completion of development of said Project as envisage herein;

7.4.12. No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received or served upon the Owner/Promoter in respect of the said "'Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land and/or the Project except those disclosed in the title report/certificate of Owner/Promoter's Advocate.

8. RIGHTS OF THE OWNER/PROMOTER:

The Parties hereto agree that the Owner/Promoter under this agreement shall be entitled to the following rights:

8.1 The Owner/Promoter as per Special Township Policy, 2005 (STP) and the subsequent amended Integrated Township Policy, 2019 (ITP) or by further notifications published

time to time till the completion of Township, under Maharashtra Regional and Town Planning Act, 1966 or any other legal provision applicable to the said Kaleidoscope Township Land as well as future additional lands acquired by the Owner/Promoter will be entitled to use, modify, consume and transfer, global Floor Space Index / Floor Area Ratio ("F.S.I.") Additional Premium Paid and Fungible FSI, Transferable Development Rights (T.D.R.) either in the same Sector or any other location in the said Kaleidoscope Township.

8.2 The Owner/Promoter hereby declares that the Floor Space Index (F.S.I.) sanctioned as on date in is 11116.08 Sq. Mtrs., respect of the said "Kaleidoscope R5 -Misty Greens - phase 3B, **said** Project on part of Sector R-5 Misty Greens - phase 3. **And said area** to be utilized in respect of the said project "Kaleidoscope R5 -Misty Greens - phase 3-B**"**. The total F.S.I. of 11116.08 Sq. mtrs shall belong to said Project "Kaleidoscope R5 - Misty Greens - phase 3-B" and total sanctioned area of Sector R-5 Misty Greens - phase 3 (Entire Sector R5-3A, B &C) would be conveyed to the Society/ Apex body/Federation as may be formed after completion of entire development of said project "**Kaleidoscope R5 -Misty Greens - phase 3"** in Sector R-5. No separate permission shall be required from the Purchaser/Allotte in favour of Owner/Promoter to carryout sanction of such balance F.S.I./ Premium F.S.I. of **"Kaleidoscope R5 -Misty Greens - phase 3-B" (in sector R-5)**

8.3 Irrespective of the fact that the conveyance as envisaged under this Agreement has been executed by the Owner/Promoter or not, Without requiring any consent or power from the said society/apex society/federation, the Owner/Promoter shall be entitled to modify, submit get sanctioned from concerned planning authority entire layout plan of the township without changing F.S.I. and the area of the said project land and the buildings thereon,

8.4 The Owner/Promoter, for all moneys due and payable by the Purchaser to the Owner/Promoter under this Agreement, shall have first and paramount lien and charge upon the said Plot and the right, title and interest of the Purchaser therein.

8.5 The Overall Township Amenities, green spaces, public utility spaces, open spaces, gardens, shall vest in the Owner/Promoter or its assigns, and it shall have right to allot, sell, transfer, convey or otherwise deal with the same and for the reason of purchase of the said Plot, the Purchaser herein or the said society shall not be entitled to claim any

right, title or interest therein except that they shall be entitled to the use thereof as per the Rules that will be made applicable thereof by the Owner/Promoter and on payment of the charges, feesas will be stipulated by the Owner/ Promoter.

8.6 The Owner/Promoter shall be entitled to add or amalgamate adjoining lands to the said project land/ Township Land' and shall be entitled to provide all the Township/ "Kaleidoscope R5 -Misty Greens - phase 3-B" Project amenities to such lands.

8.7 Notwithstanding whatever stated elsewhere in this Agreement, the Parties expressly agree and the Purchaser understands that the schematic layout of amenities given in the brochure of the **TP** depict the indicative amenities, however the Owner/Promoter will always at its discretion have the right to alter / amend / relocate /add / delete/change any of the items or specifications or amenities outside of the said Project Land.

8.8 The Owner/Promoter has specifically disclosed to the Purchaser and the Purchaser has well-understood that the Owner/Promoter is carrying out the **TP** as aforesaid and till the completion of the **TP**, the Owner/Promoter may revise the layout and / or building plans from time to time in respect of the said Township Land, without affecting the layout plan of said Sector No.R-5 phase 3A and the said plot. However, due to such revisions, the location and the area of the sectors and / or artery roads and / or internal roads and / or the open spaces / green spaces / public utility spaces and / or the amenity spaces may change as compared to the sanctioned layout of the said Township Land. The Purchaser/Allottee has therefore hereby given his specific permission /No Objection for the same. The Purchaser/Allottee also agrees and confirms that the Owner/Promoter shall be absolutely entitled to use or permit to be used, the artery roads and/ or the internal roads as per the sanctioned or revised layout in respect of the said Township Land, as an access to the other projects or lands included by the Owner/Promoter in the **TP** as also as an access to the other lands or projects to be developed by the Owner/Promoter or any other promoter, land owner in the vicinity of the said Township land and the Purchaser shall not be entitled to raise any objection whatsoever for the same.

8.9 The Owner/Promoter, subject to the rules and regulations for the time being in force in this behalf, shall be entitled to change the user of any portion / Sector of the said Township Land and/or any structure/s thereon for any other purposes other than said project land and subject to the rights of the Purchaser in respect of the said Plot hereby agreed to be sold at the absolute discretion of the Owner/Promoter.

8.10 In case the Owner/Promoter forms the said Society as agreed hereinabove, before sale or disposal of some of the Plots in the said Project, in that case the Owner/Promoter shall have the privilege and right to sell, dispose of such unsold Plots, to any person/s as per his discretion at any time in future, without any objection of whatsoever nature on the part of the Purchaser or the said Society. The Owner/Promoter shall liable to pay fixed maintenance charges of Rs.100/- in respect of the said unsold Plots. The Plots in respect of which concerned agreements to sell are cancelled or terminated as envisaged under this Agreement, shall also be treated as unsold Plot for the purpose of this clause. Such new purchasers shall be given membership of the said Society and the same shall be given by accepting only Membership Fee without asking for any other consideration/fee. The Purchaser as well as the said Society shall extend all co-operations to the Owner/Promoter and the new purchaser in this regard.

8.11 In the event any portion of the said Project Land being required by any utility / service provider for installing any electric sub-station / transformer / Tower, gas bank machinery, plants, buildings, et cetera, the Owner/Promoter shall be entitled to transfer such portion to the said utility / service provider or any other Society for such purpose on such terms and conditions as the Owner/Promoter deems fit and / or as per requirement of such utility / service provider or as per applicable law/ rules / regulations. The Purchaser/Allottee herein or the said Society shall not be entitled to raise any objection in this regard

THE PURCHASER / ALLOTTEE/S OR HIMSELF / THEMSELVES WITH INTENTION TO BRING ALL PERSONS IN TO WHOSOEVER HANDS THE PLOT/SAID PLOT MAY COME, HEREBY COVENANTS WITH THE OWNER/PROMOTER AS FOLLOWS: - i.e. COVENANTS OF THE PURCHASER:

9 The Purchaser does hereby, agree, assure, confirm, declare and covenant unto and in favour of the Owner/Promoter as under:

9.1. Specific covenants by the Purchaser(s)/Allottee(s): The Owner/Promoter has disclosed and explained the unique features of the **TP** to the Purchaser/Allottee and the Purchaser/Allottee has well understood the same. Hence it is specifically agreed and undertaken by the Purchaser/Allottee with the Owner/Promoter as follows:

9.1.1. Without the consent of the Owner/Promoter till the date of conveyance and of the

Society thereafter:The Purchaser shall not do, execute and perform any act, deed or thing whereby the ambience, features, design and objects of the said Plot, said Kaleidoscope Project and/ or the **TP** will be affected in any manner whatsoever.

9.1.2. The Purchaser shall not do, execute or perform any act, deed or thing whereby the enjoyment of the common areas and facilities of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project as well as the **TP**, such as common open spaces, internal roads, entrance areas and gates will be affected in any manner whatsoever.

9.1.3. The Purchaser has specifically agreed to maintain the unique features, ambience and esthetics of the said Plot /said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and/ or the **TP**.

9.2 Covenants relating to usage of the said Plot:

9.2.1. To maintain the said Plot at the P u r c h a s e r / Allottee's own cost in good and tenantable condition and maintain it as per guidelines given in user manual from the date that of possession of the Said Plot is taken and shall not do or cost to be done anything in or to the project in which the Said Plot is situated which may be against the rules, regulations or bye-laws or change/alter or make addition in or to the project in which the Said Plot is situated and the Said Plot itself or any part thereof without the consent of the Owner/Promoter and sanctioning authorities.

9.2.2. Not to construct any illegal structure on the said Plot and not to store in the said illegal structure any goods which are of hazardous, combustible or dangerous nature as to damage the construction or structure of the adjacent plot holders/members situated in the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project land/said Township. In case any damage is caused to the said Project in which the Said Plot is situated or on account of negligence or default of the Purchaser/Allottee in this behalf, the Purchaser/Allottee shall be liable for the consequences of the breach.

9.2.3. Not to throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Plot in the compound or any portion of the project land in which the Said Plot is situated.

9.2.4. Pay to the Owner/Promoter within fifteen days of demand by the Owner/Promoter, his share of security deposit demanded by the concerned Township authority, local authority or Government or giving water, electricity or any other service connection to the said Project in which the Said Plot is situated.

9.2.5. To bear and pay increase in local taxes, fire cess, water charges, insurance and such other levies, if any, which are imposed by the concerned local authority and/or Government and/or other public authority, on account of change of user of the Said Plot by the Purchaser/Allottee for any purposes other than for purpose for which it is sold.

9.2.6. The Purchaser/Allottee shall not let, sub-let, transfer, assign or part with interest or benefit factor of this Agreement or part with the possession of the Said Plot until all the dues payable by the Purchaser/Allottee to the Owner/Promoter under this Agreement are fully paid up.

9.2.7. The Purchaser/Allottee shall observe and perform all the rules and regulations which the Township Management Authority **TMA**, Society or the Limited Company or Apex Society or Federation may adopt at its inception and the additions, alterations or amendments thereof that may be made from time to time for protection and maintenance of the said project and the Plots therein and for the observance and performance of the Building Rules, Regulations and Bye-laws for the time being of the concerned local authority and of Government and other public bodies. The Purchaser/Allottee shall also observe and perform all the stipulations and conditions laid down by the TMA, Society/Limited Company/Apex Society/Federation regarding the occupancy and use of the Said Plot in the Project and shall pay and contribute regularly and punctually towards the taxes, expenses or other out-goings in accordance with the terms of this Agreement. The Purchaser will also follow all rules and regulation and stipulations as may be formed by the Township ManagementAuthority time to time.

9.2.8. That the Purchaser/Allottee shall indemnify and keep indemnifying the Owner/Promoter towards against any actions, proceedings, cost, claims, and demands in respect of any breach, non-observance or nonperformance of such obligation given specifically herein to the Purchaser/Allottee.

9.3 Covenants of the Purchaser about payment of maintenance charges:

9.3.1 The Owner/Promoter has declared to the Purchaser/Allottee about applicable current maintenance charges as follows a) Rs. 22/- per Sq. Mtrs. per Month towards Township maintenance charges and b) Rs.11/- per sq. Mtrs. per Month towards society maintenance charges. Within 15 days after notice in writing is given by the Owner/Promoter to the Purchaser/Allottee that the said Plot is ready for use and

occupancy, the Purchaser/Allottee shall be liable to bear and pay the proportionate share of outgoings in respect of the said project, Project maintenance charges, and Said Township maintenance charges (**TMC**), maintenance of said **TP** The Purchaser shall hand over to the Owner/ Promoter a duly drawn cheque in favour of the Owner/ Promoter and/or the said Society, for an ad-hoc aggregate amount calculated at the rate of Rs. 22/- per Sq. Mtrs., per month for a period of the first 24 months towards Said Township maintenance charges (**TMC**), maintenance of said **TP**. And charges of Rs.11/- per sq. mtrs., per month for first 12 months towards society maintenance charges The society will immediately transfer the said collected **TMC to TMA**. In case the actual expenditure exceeds the estimate, the Owner/ Promoter / the said Society shall be entitled to ask for additional amount towards the maintenance contribution from the Purchaser. The period for payment of township and society maintenance shall commence from the date of the first letter issued by the Owner/Promoter to the Purchaser/Allottee offering possession of the said Plot. The amounts so paid by the Purchaser/Allottee to the Owner/Promoter shall not carry any interest.

9.3.2 The said maintenance charges are to be utilized by the Owner/Promoter or the said Society as the case may be towards: (i) expenses of maintenance of Project Amenities, common Amenities, and Township maintenance Charges towards contribution for maintenance of overall Township amenities. The tenants or licensees of the Purchaser shall not be automatically entitled to benefit of Optional Facilities and the Purchaser shall incorporate clause to that effect in concerned deeds / documents etcetera. It is further agreed that the Purchaser/Allottee will pay the grampanchayat tax and fire cess as may be levied in addition to society maintenance charges and township maintenance charges.

9.3.3 The Purchaser shall not withhold any payments of the amounts due and payable to the Owner/Promoter or the said Society as the case may be under this clause on any ground whatsoever. In case the Purchaser commits any default in payment of the maintenance charges payable to the Owner/Promoter or to the said Society, the Owner/Promoter or the said Society as the case may be shall have first charge over the said Plot, and such charge shall move with the said Plot and shall be binding on all subsequent transferees of the Purchaser. The Owner/Promoter or the said Society shall be entitled to recover the said arrears with interest thereon by due course of law. Further the Owner/Promoter and/or the

said Society shall be entitled to get the said Plot attached to recover the said arrears as per Sec. 154B-29 of the Maharashtra Co- operative Societies Act, 1960. Moreover, in case of such default on part of the Purchaser, the Owner/Promoter and/or the **TMA** and/or the said Society shall be entitled to withhold supply of any/all of the utilities such as internet connections, cable connections, cooking gas connections, water supply et cetera of the Purchaser until entire amount due are duly paid by the him to the Owner/Promoter and/or the **TMA** and/or the said Society as the case may be, with interest thereon.

9.3.4 Covenants relating to the transfer of the said Plot by the Purchaser:

The Purchaser shall not, without written permission of the Owner/Promoter before the execution and registration of conveyance to the said Society or without written permission of the said Society after execution and registration of the said conveyance let, sublet, transfer, assign, convey, mortgage, charge or in any way encumber or deal with or dispose of the said Plot or part with the possession of the said Plot or any part thereof or create third party interest of any kind in respect of the said Plot or any part thereof and/or in respect of any of the rights hereunder conferred upon the Purchaser in any manner whatsoever. The Owner/Promoter or the said Society shall be entitled not to give such permission to the Purchaser until and unless i) all the dues payable by the Purchaser to the Owner/Promoter or the said Society or to the Apex Society/Federation under this agreement are paid in full; ii) the Purchaser has rectified default or breach of any of the terms and conditions of this Agreement committed by the Purchaser, and; iii) the Purchaser has adequately indemnified the Owner/Promoter or the said Society as the case may be for such default or breach, iv) The Purchaser shall covers all terms and condition stipulated in this Agreement at the time of execution and registration of transfer deed in favour of third party.

9.4. Covenants relating to the said Society:

9.4.1. The Purchaser shall strictly observe all the rules, regulations, bye-laws, resolutions and any amendments thereto of the said Society.

9.4.2. The Purchaser shall pay to the said Society regularly and punctually, the maintenance charges and also any other charges / contributions etcetera as stated in Clause No. 9.3 hereinabove relating to covenants of the Purchaser about the maintenance charges or determined by the said Society from time to time. In case of default in such payment on

part of the Purchaser, the said Society shall be entitled to take necessary action on the Purchaser as per law and as per the bye-laws of the said Society.

9.4.3. The Purchaser along with other purchasers shall not be entitled to form a co-operative society on their own. The Owner/Promoter alone shall be entitled to form society of Plot purchasers as envisaged under this Agreement.

9.4.4. The Purchaser shall not throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Plot in the compound or any portion of the said Township Land and the said Project Land.

9.4.5. The Purchaser and said society shall comply with garbage and solid waste disposal system for collection and disposal implemented by the **TMA** as per the applicable provisions of law.

9.4.6. The Purchaser shall always be liable to separate the dry garbage from the wet garbage generated by him. The said Society shall collect such separated garbage from the Purchaser and the Owner/Promoter / **TMA** shall collect the same from the said Society and dispose it off.

9.4.7. Disposal of sewage and garbage in the **TP** shall be the responsibility of the Owner/Promoter / **TMA** for which the Purchaser shall always follow the rules and regulations framed by the **TMA** in respect of segregation, storage, collection and disposal of sewage and garbage in the **TP**.

9.4.8. It is the responsibility of every Purchaser / Allottee and its nominees to ensure that the resolutions are made and permanently remain towards the system of society collecting both society maintenance charges and **TMC** and paying to the **TMA** the **TMC** within time.

9.5. Covenants relating to Purchaser's rights to the said Plot:

The only rights under this Agreement conferred upon the Purchaser are the rights in respect of the said Plot alone and the same are restricted by terms and conditions of this Agreement. The Purchaser agrees that the Owner/Promoter has exclusive right in respect of rest of the Plots in the said Project and also in respect of all the open spaces, remaining on the said Township Land along with the right to utilize inherent and unutilized F.S.I. or T.D.R. and benefits arising out of setback as detailed in this Agreement.

9.6. General covenants:

9.6.1. The Purchaser hereby agrees to observe, perform and comply with all the terms, conditions, stipulations and restrictions, if any, which may have been imposed by the concerned authorities at the time of sanctioning the said plans or thereafter.

9.6.2. The Purchaser is hereby prohibited from raising any objection in the matter of sale and use of any Plot as well as amenity space being used as commercial or otherwise by the Owner/Promoter, as well as allotment of exclusive right to use car parking/s, garden space/s, space/s for advertisement or any others space/s whether constructed or not and called under whatsoever name, etc. on the ground of nuisance, annoyance or inconvenience for any profession, trade or business etc. that has been or will be permitted by law or by local authority in the concerned locality.

9.6.3. Any delay tolerated, indulgence shown by the Owner/Promoter in enforcing the terms of this Agreement or for any forbearance or giving of time to the Purchaser/s by the Owner/Promoter shall not be considered or construed as a waiver on the part of the Owner/Promoter of any breach or non-compliance of any of the terms and conditions of this Agreement by the Purchaser/s nor shall the same in any manner prejudice the rights of the Owner/Promoter.

9.6.4. Member of any other society in the **TP** should adhere to all security rules framed by **TMA** and said member and his vehicles shall have right of ingress and egress through the internal roads/ pathways/ driveways of the said Society, and All entitles in the said **TP** and the Owner/Promoter shall have right to lay down all service like drainage line, electricity line, storm water line, pathways, walkways through the said society and land conveyed to entities/ Apex Body/s /Federations formed /to be formed in the said **TP** .

9.6.5. After the possession of the said Plot is handed over to the Purchaser, if any work thereafter is required to be carried out by the Government or semi-government or local authority or any statutory authority, the same shall be carried out by the Purchaser in co-operation with the purchasers of the other Plots in the said Project at their own costs and the Owner/Promoter shall not be in any manner liable or responsible for the same.

9.6.6. Nothing contained in this Agreement is intended to be nor shall be construed as a grant, demise or assignment in law of the said Plot or of the said Township Land or the said project, or any part thereof. The Purchaser shall have no claim, save and except, in respect of the said Plot hereby agreed to be sold to the Purchaser. The open spaces, parking, lobbies, said Project Amenities etcetera, shall remain property of the

Owner/Promoter until the said Project structure together with the said Plot, save and except any part reserved by the Owner/Promoter, are transferred to the said Society.

9.6.7. Significant risks and rewards of ownership and effective control of the said Plot shall be deemed to have been transferred on delivery of its possession though ownership of the said Plot and effective control of the said Project shall remain with the Owner/Promoter. It is hereby made clear that the Owner/Promoter is or will be constructing the said Plot or Project or developing the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project land / Township Land as owner thereof and at its own costs and not for and on behalf of or as agent of the Purchaser and has not agreed to transfer any goods involved in the works contract. By this agreement, the Owner/Promoter has agreed to convey in future an immoveable property.

9.6.8. If the Purchaser suffers any loss, damages etcetera arising out of this transaction, by reason of any change, amendment, modification, change in any statute, law, rules, regulations et cetera, the Owner/Promoter shall not be liable to make good the same to the Purchaser.

9.6.9. The Owner/Promoter has, at time of allotment or prior to the execution hereof, as demanded by the Purchaser given inspection to the Purchaser of all the documents of title relating to the said Township Land; copies inter alia of maintenance manual and all sanctions, permissions, licenses, clearances, et cetera issued in favour of the Owner/Promoter by various local / government / semi government bodies; right of Owner/Promoter to develop the **TP**; the rights of the Owner/Promoter to construct/ develop/ sell the Plots car parking spaces/ gardens/ terraces et cetera; plans, designs, specifications, master layout, title report, maintenance Manual and all other related documents as are specified under the Real Estate (Regulation and Development) Act 2016 & then Prevailing Law; and the Purchaser has satisfied himself about the title of the Owner/Promoter to the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land, his rights to develop the **TP** and to allot and sell the said Plot; and the Purchaser shall not be entitled to raise any objections whatsoever in this regard.

9.6.10. The Purchaser shall pay to the Owner/Promoter the said Consideration and contributions or outgoings punctually and diligently and shall observe all the terms and conditions of this Agreement strictly.

9.6.11. The membership of the "Said Club House" will be transferred to a federation that

includes residences from Kaleidoscope R5, R4, R3, and other bungalows within the Kaleidoscope Township.

9.6.12. All the applicable covenants under this Agreement agreed to by the Purchaser shall be binding on the transferee/licensee of the Purchaser. The Purchaser undertakes to make this condition essential ingredient of the concerned instrument of transfer/license with his transferee/licensee.

9.6.13. The use of brand/ trade mark Paranjape schemes and Kaleidoscope Developers Pvt. Ltd. are being used by the Owner/Promoter under a separate agreement from the owners of brand /trade mark. The aforesaid agreement is the part of title documents supplied to the purchaser. The responsibility of Owners of such brand /trade mark shall be restricted to the responsibility mentioned under aforesaid trade mark agreement.

9.6.14. The Owner/ Promoter hereby clarifies that it has withdrawn all its advertisements and brochures etcetera in respect of the said Project published prior to 01.05.2017 and the same are not in use since then; and the purchaser/Allottee/s hereby acknowledges the same. The Purchaser/Allottee/shereby clarifies that he has relied only on the Agreement.

SPECIAL COVENANTS OF BOTH THE PARTIES ABOUT THE TP:

10. The Owner/Promoter and the Purchaser agree, assure, confirm, declare and covenant unto and in favour of each other as under:

10.1. About Conveyance of the lands out of the said Township Land in favour of the Owner/Promoter:

10.1.1. The Owner/Promoter has specifically disclosed to the Purchaser that for acquiring the title / ownership, the Owner/Promoter will be purchasing the remaining lands out of the said Township land by getting the sale deeds executed and registered from the owners thereof in pursuance of the Development Agreements and Power of Attorneys executed by them in favour of the Owner/Promoter. The Purchaser has well understood the same and the Purchaser has clearly given his Permission/ no-objection for execution and registration of such Sale Deeds of the lands out of the said Township land in favour of the Owner/Promoter. No separate permission/no objection is required to be taken by Owner/Promoter from Purchaser/Allottee in respect of the same.

10.1.2. In case if the Owner/Promoter gets conveyed, the remaining lands out of the said Kaleidoscope Township Land in its name, then the Owner/Promoter being the owner of the said Township Land after completion of development on the said portion lands shall

also be responsible to execute the deed of conveyance of the concerned portion of lands out of the said Kaleidoscope Township Land in favour of the said entities as may be formed of such development.

10.1.3. The Owner/Promoter has specifically disclosed to the Purchaser that Owner/Promoter has given the easement rights through the said land/property which is touching the said **TP** owned by the Sarang Kale. In future also Owner/ Promoter shall have rights to give such easement rights with or without consideration to adjoining land owner and townships.

10.1.3 In case the transaction being executed by this agreement between the promoter and the allottee is facilitated by a Registered Real Estate Agent, all amounts (including taxes) agreed as payable remuneration / fees/charges for services/commission/brokerage to the said Registered Real Estate Agent, shall be paid by the Promoter/ allottee/both, as the case may be, in accordance with the agreed terms of payment"

11 About development of the"Kaleidoscope R5 -Misty Greens - phase 3-B" Project and TP:

11.1. The Purchaser shall have no claim to any other part of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project / the **TP** nor can he/she/they make any claim or raise any objection to the development of the other portions of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project / the **TP** or to any decision that the Owner/Promoter may take in that regard.

11.2. The Owner/Promoter shall have total discretion in the matter of development and maximum exploitation of the remaining portions of the said Township Land / the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project land and for that further acquire lands in future and expand the Kaleidoscope Township. The Owner/Promoter shall also have total discretion in the matter of the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project land and shall be entitled to develop, construct sell and dispose of Plots in the said Project.

11.3. The said Project on the said Township Land will be completed step by step or in phases/ stages along with all the necessary amenities and facilities thereof.

12. About maintenance of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" **Project and the TP:**

12.1. All the Plot purchasers in the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project together with other residents, including the Purchaser herein shall pay maintenance charges to their respective entities regularly. The maintenance charges payable by the Plot purchasers to the society shall be on 'Per Square Meter Basis' per month on sharing area of the said Plot. The rate of maintenance charges will be decided by the respective Society. The maintenance charges payable by the Purchaser to the respective Society shall be comprehensive in nature and shall include maintenance charges towards maintenance of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities and Overall Project Amenities and Township Amenities. The said Society alone shall be responsible to collect and recover the maintenance charges from the Purchaser and other Plot purchasers.

12.2. All the entities in the **TP** including the said Society as envisaged under this Agreement shall maintain their respective Project and their respective common area and facilities, in every aspect, out of the maintenance charges collected from the purchasers of the Plots. They should keep the property always insured. Also maintain firefighting and other services by doing annual maintenance contract with professional service providers.

12.3. All the entities in the **TP** including the said Society shall pay their respective contribution out of the maintenance charges received from the Plot purchasers, to the TMA, for maintenance of said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project amenities and—Overall Township Amenities. The Purchaser agree that the said contribution of maintenance charges towards maintenance of the said Overall Township Amenities payable by the said Society to the TMA shall be equivalent to sum total of, i) entire cost of maintenance of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities and Overall Township Amenities ii) the overhead costs of such organization iii) pro-rata provision of replacement cost and iv) profit margin of about 10% for the TMA over the aforesaid three cost components. v) Over and above said charges, any service tax, GST any other taxes may be applicable time to time. The Purchaser/Allottee hereby agreed, undertakes and covenanted with the Owner/Promoter that he/she/they shall responsible to pay the TMC amount to the said Society within due date. And for that all Plot purchasers/allottees including this Purchaser/Allottee shall pass a resolution in the first general body meeting of the society and give appropriate

rights to the Society Managing Committee to collect the TMA amount from all its members and hand over the collected TMC amount to the TMA within time.

12.4. The said Society and/or Apex Society/Federation shall not be entitled to withhold payment of its said contribution to the said TMA on the ground of non- payment of maintenance charges on part of its members. In case of default on part of the said Society, the said TMA shall be entitled to take actions against the said Society as detailed under this Agreement.

12.5. The said Society and/or Apex Society/Federation shall maintain the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities (said Amenities) diligently the said TMA shall be entitled to intervene and take over maintenance of the said project at the sole cost of the society. In such an eventuality the said Society shall be liable to pay charges as decided by the said TMA towards cost of management of the said Amenities.

12.6. There shall be one and the same security agency as suggested by **TMA**, employed for all the entities in the **TP**.

12.7. The **TMA** shall maintain the said Overall Township Amenities out of the contribution paid by all the entities in the Township and the Purchaser along with all other unit purchasers shall be entitled to use the same as envisaged under this Agreement.

12.8. The said Society as well as the said **TMA** shall be entitled to increase the maintenance charges as and when required.

12.9. In case of default of payment of maintenance on part of the said Society to the **TMA**, the **TMA** shall be entitled to i) discontinue the supply of utilities to the said Society agreed hereunder and/or ii) discontinue supply of other services envisaged hereunder and/or iii) prevent the members of the said Society from using the said Township Amenities or part thereof, iv) to levy appropriate fines / interest / penalties et cetera on the said Society; until actual realization of the amount due from the said Society.

12.10. The said Optional Facilities can be utilized by the Purchaser on payment of separate fees to the **TMA** as applicable from time to time and the **TMA** shall be entitled to make the same available to any third parties as detailed under this agreement. Entitlement of the Purchaser to the use of the said Optional Facilities is entirely voluntary on submitting application and agreeing to abide by Rules and Regulations of the **TMA** and he is not entitled to oblige the Owner/Promoter or **TMA** to render the services in the said Optional Facilities and allow the use thereof merely for the reason of purchaser

purchasing the said Plot in the **TP**. In case of non-payment or non-observance of the Rules the Promoter or **TMA** shall be entitled to discontinue the service to the Purchaser and prevent use of the Optional Facilities.

12.11. The amenities of school, hospital and open market in the **TP** shall be run by independent bodies as per their own rules and regulations.

12.12. The Owner/Promoter and/ or **TMA** shall be entitled to impose and collect toll/entry fee on the outsiders for ingress to the **TP** and/or to the said Township Amenities, so as to restrict free access to the same.

12.13. So as to promote and maintain adequate discipline, hygiene, ambience, aesthetics and proper usage of the said Overall Township Amenities, the **TMA** shall frame bye – laws / rules / regulations / policies et cetera, inter alia regarding admission to and usage/ maintenance/ repairs et cetera of the said Overall Township Amenities and the Purchaser and the said Society shall observe the same strictly. The **TMA** will form an advisory committee to improve the policies for maintaining the said Overall Township Amenities, which may advise the **TMA** in that regard. Every entity/society in the **TP** shall be given representation on this committee.

13. About the supply of utilities:

13.1. The Owner/Promoter or its appointed agency shall arrange to supply overall township utilities to all the residents therein, at cost / usage fees / consumption charges as decided by the **TMA** / relevant authority from time to time, payable by the purchasers and / or the entities as the case may be to the **TMA**.

13.2. The Owner/Promoter may enter into an agreement with the relevant authority of Government of Maharashtra for provision of fire brigade services. The Owner/Promoter will bear one time investment for infrastructure for the said fire brigade services. In such case the Purchaser or the said Society as the case may be, shall pay proportionate recurring expenses in respect of the said fire brigade services and related facilities, directly to appropriate authority or to the Government of Maharashtra; otherwise to the **TMA**.

13.3. The **TMA** shall arrange for the supply of treated water to each Plot/Tower/Building in the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project/ **TP**. The **TMA** shall provide independent water meter to each society/entity and the society/entity shall pay to the **TMA** for the same as per unit rates decided solely by the **TMA**. The source of water

will be nearby river 'Mula 'and / or 'Manas Lake' and / or other reasonable source which may be available. In case, for the reasons beyond its control, the **TMA** is unable to use the river or the lake as source of water and the **TMA** has to arrange other sources of water, then all the entities shall bear extra cost for such arrangement. However the **TMA** shall not be responsible for short supply of water, for reasons beyond its control as source of water is beyond control of the **TMA.** The Owner /Promoter or the **TMA** has the right to provide only designated quota of water as is envisaged as per EC norms.

13.4. The Owner/Promoter shall install the water sewage treatment plant and arrange for solid waste management and the **TMA** shall be responsible for maintenance of the same. The Purchasers/Allotees in the said Project and the said Society shall be responsible for co-operation and adharance to the rules as may be formed from time to time by **TMA** for such arrangement of solid waste management /Sewage Treated Water utilization.

13.5. The Owner/Promoter shall arrange that Maharashtra State Electricity Distribution Company Ltd. ('M.S.E.D.C.L.') or any other Power Utility shall directly provide electricity to purchaser of each Plot, to all the entities in the **TP**, and to **TP**; and electricity consumption charges shall be recovered by M.S.E.D.C.L. from the respective consumers directly. However, the **TMA** shall not be responsible for short supply of electricity. The said society in the said Project shall be supplied with a generator set back up for common areas, which shall be exclusively maintained by that society.

13.6. The **TMA** shall arrange for internet and Cable TV from either service provider or itself. The Purchaser shall pay the bill / charges for the same directly to the respective provider or to the **TMA** as the case may be. The Purchaser shall not be entitled to avail services from providers other than those made available by the **TMA**. The Society or Purchaser / Allottee shall not object for any communication towers.

14. Miscellaneous:

14.1. Provisions of all roads, access, utilities, et cetera on part of the **TMA** shall always be subject inter alia to the **TP** Regulations, other laws, rules, statutes, et cetera in that regard.

14.2. The **TMA** shall be entitled to change inter alia the systems, procedures, rules, regulations, bye-laws et cetera in respect of maintenance of the Overall Township Amenities as well as Society Amenities, solely at its own discretion and the same shall be binding on the Purchaser and the said Society.

14.3. The Owner/Promoter, before execution of this Agreement has explained to the Purchaser inter alia, the entire scheme of **TP**, mode and form of conveyance, formation of society, maintenance of Overall Township Amenities as well as Society (project) Amenities, the difference between the said Optional Facilities and the said Township Amenities et cetera and the Purchaser having understood and accepted the same, has executed this Agreement.

14.4. This Agreement shall also be contemplated as MOU between the Project Authority i.e. the Owner/Promoter herein and the Purchaser herein as envisaged in the environmental clearance granted to the Owner/Promoter by the Ministry of Environment and Kaleidoscopes (I.A. Division).

14.5. The Purchaser and/or the said Society shall follow all rules, regulations, conditions, et cetera imposed by all the laws, statutes, boards and policies, inter alia such as I) Water (Prevention and Control of Pollution) Act 1974, ii) Air (Prevention and Control of Pollution) Act 1981, iii) Environment (Prevention and Control of Pollution) Act 1986, iv) H.W. (M & H) Rules, vii) Maharashtra Pollution Control Board, viii) Letter of Intent, ix) Public Liability (Insurance) Act, 1991, x) Regulation for Development of Special Township In Area under Pune Regional Plan, x) Maharashtra Regional and Town Planning Act,1966 , xi) , and all concerned & then prevailing laws applicable for time being in force, et cetera and notifications, circulars thereunder, published by concerned government authorities / departments.

15. GENERAL COVENANTS AND COMPLIANACE OF LAWS RELATING TO REMITTANCES:

15.1 The Purchaser/Allottee, if resident outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act and rules and Regulations made thereunder or any statutory amendment(s), modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/sale/transfer of immovable properties in India etc., and provide the owner/promoter with such permission, approvals which would enable the Owner/Promoter to full fill its obligations under this agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or statutory enactments or amendments thereof and the Rules

and Regulations of the Reserve Bank of India or any other applicable law. The Allottee/s understands and agrees that in the event of any failure on his/her part to comply with the applicable guidelines issued by the Reserve Bank of India, he / she shall be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time.

15.2 The Owner/Promoter accept no responsibility in this regard. The Purchaser/Allottee/s shall keep the Owner/Promoter fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Purchaser/Allottee/s subsequent to the signing of this Agreement, it shall be the sole responsibility of the Purchaser/Allottee/s to intimate the same in writing to the Owner/Promoter immediately and comply with necessary formalities if any under the applicable laws. The Owner/Promoter shall not be responsible towards any third party making payment / remittances on behalf of any Purchaser/Allottee/s and such third party shall not have any right in the application / allotment of the said Plot applied for herein in any way and the Owner/Promoter shall be issuing the payment receipts in favour of the Purchaser/Allottee/s only.

16. ABOUT ISSUE OF NO OBJECTION FOR TRANSFER OF THE SAID PLOT:

16.1. The Purchaser shall be entitled to assign, transfer otherwise deal with their rights arising by these in respect of the said Plot to any person of his choice, during construction stage of the said Plot and the Owner/Promoter on prior written request in prescribed form, shall issue in his favor necessary No Objection Certificate to that effect and shall also co-operate with the Purchaser in that regard, provided, i) the Purchaser pays entire consideration amount to the Owner/Promoter before selling the said Plot, ii) the Purchaser pays to the Owner/Promoter transfer charges of Rs. 1,00,000/- and iii) the subsequent purchaser of the said Plot absolutely consents to abide by all the terms and condition of this Agreement for which the Parties agree to execute a tripartite agreement with a new purchaser joining in as a third party.

16.2. If the Purchaser after possession, after formation of the said Society but before execution and registration of the conveyance intends to assign his rights in respect of the said Plot, he/she/they shall take No Objection from the Owner/Promoter as well as from the said Society (if formed at that time), by paying the said transfer charges as determined by the said Society.

16.3. If the Purchaser after execution and registration of the conveyance, intends to assign

his/her/their rights in respect of the said Plot by way of sell/lease/ assignment the Purchaser shall be liable to pay the requisite amount fixed by the government from time to time as transfer fee to the said society along with the then prevailing deposit amount as shall be fixed by said society and any increment thereto and demanded by the said transfer charges to the said Society.

17. PERMISSION BY THE PURCHASER FOR ADDITIONAL LAND IN TOWNSHIP:

17.1. The Owner/ Promoter has specifically informed and disclosed the Purchaser/Allottee and the Purchaser/Allottee has well understood that in addition to said Kaleidoscope Township Lands the Owner/Promoter may purchase some more adjacent lands and further amalgamate it into said **TP** with intention to expand the Township, to construct and develop more residential and/or commercial projects in **TP** by utilizing existing / balance potential of FSI in the Kaleidoscope Township Land as well as the additional lands acquired by the Owner/Promoter time to time in future for the expansion of **TP** without changing the area of the said project land along with said F.S.I. ,

18. PAYMENT OF TAXES, OUTGONGS ETCETERA BY THE PURCHASER:

18.1. All Taxes under GST, direct and indirect taxes, charges, cess or other outgoings, present and future, one time and/or recurring as imposed by the government, semi-government, local authorities, any statutory Society, et cetera in respect of this Agreement and this transaction shall be borne and paid exclusively by the Purchaser.

18.2. The Purchaser hereby agrees that in the event of any amount by way of premium to the State and/or Central Govt. or betterment charges or service tax or development tax or educational cess or value added Tax (VAT) or any other tax or payment of a similar nature becoming payable by the Owner/Promoter either before or after delivery of possession of the Plot the same shall be paid in advance to the Owner/Promoter, as and when charged and demanded by the Owner/Promoter. If Purchaser fails to pay the amount within fifteen days from demand then the purchaser shall be liable to pay interest as specified in Act until payment. Also in the said event there shall be charge of the amount due on the said Plot and income there from and until payment of said dues Purchaser shall not be entitled to mortgage, assign, sell or transfer the said Plot in any manner. It is understood that interest shall not cover the damages/losses that will be suffered by the Owner/Promoter due to non- payment. Therefore, Purchaser shall be

further liable to pay damages and losses that will be suffered by the Owner/Promoter due to non-payment and the Purchaser shall keep the Owner/Promoter harmless and indemnified therefrom. In case of dispute regarding above the same shall be referred to a single arbitrator to be appointed by the Owner/Promoter.

18.3. Purchaser hereby agrees to indemnify and keep the Owner/Promoter indemnified all the time and keep the Owner/Promoter harmless from all losses that may be incurred by the Owner/Promoter on account of non-payment and / or delayed payment inter alia of maintenance charges, contributions, taxes, levies, outgoings et cetera and other defaults, or any breach of terms and conditions of this Agreement on part of the Purchaser.

18.4. Provided that any deduction of an amount made by the Purchaser/s on account of Tax Deducted at Source (TDS), as may be required under the Income Tax Act, 1961, under section 194IA, read together with the Income Tax Rules,1962, as per prevailing law or such other Acts that may be introduced or substituted for the Income Tax Act, 1961 whether called the Direct Tax code or by such other name, to govern the deduction and payment of the TDS in respect of purchase of Immoveable property, while making any payment to the Developers under this Agreement shall be acknowledged / credited by the Developer to the account of the Purchaser/s, only upon purchaser/s submitting the Original certificate, evidencing deduction and payment of such tax deducted at source as may be prescribed by the Law and rules governing the deduction of TDS, Income Tax Act, 1961 and the Income Tax Rules,1962. Further such credit shall be subject to, confirmation of the amount so deducted reflecting in the TDS/Tax credit account of the developer, reflected in form 26AS as prescribed under the prevailing laws or such other forms/certificates that may be prescribed in future to acknowledge credit of taxes paid or deducted on behalf of the developer on the website of the Income tax Department or of any agency so appointed by the Income tax department or relevant authorities as the case may be to manage, govern or regulate the collection and deductionof Income tax.

18.5. The Purchaser/s hereby agrees, confirms and declares that: The Purchaser/s shall be liable to deduct and pay the Tax Deducted at Source ("**TDS**") on the full value of the price/consideration of the said Plot as mentioned in the agreement, as per Section 194 IA of the Income Tax Act, 1961, to the concerned government authority, compulsorily on or before 7th (seventh) day of the month subsequent to the month in which the said deduction made and shall handover a copy of challan & certificate from the appropriate /

concerned authority in that regard to the Owner/Promoter within 7 (seven) days from the date of payment of the TDS.

18.6. The Owner/Promoter has informed the Purchasers /Allottees that it is mandatory duty of the Purchasers/Allottees to deduct TDS from payment of consideration payable to the Owner/Promoter and deposited such amount deducted at source with concerned Govt. department within prescribed period as per the provisions of Section 194 IA of Income Tax Act, 1961 and rules thereunder. If in case the Purchasers/ Allottees are penalized for failure to so deduct and/or so pay the deducted amount the Purchasers/Allottees shall not be entitle to make any claim of refund against the Owner/Promoter for any additional amount that may be required to be paid by him together with interest, penalty as the case may be by the Income Tax department, on the ground of lack of knowledge of the provision of the law or any other ground whatsoever.

18.7. Provided further that at the time of handing over the possession of the said Plot, if any such certificate(s) has not been produced or submitted by the purchaser to the owner/promoter, the purchaser shall pay/deposit an equivalent amount as interest free deposit with the Owner/Promoter, which deposit shall be refunded by the Owner/Promoter on the purchaser producing such certificate(s) within 4 months of taking possession of the said Plot. Provided further that in case the purchaser/s fails to produce such certificate(s) within the stipulated period of the 4 months, the Owner/Promoter shall be entitled to appropriate the said Deposit against the sum(s)/dues receivable from the Purchaser/s.

19. REGISTRATION AND COST THEREOF:

19.1. The Purchaser shall this Agreement at the proper registration office for the registration within the time prescribed by the Registration Act, 1908 from the date of execution hereof and upon intimation thereof by the Purchaser, the Owner/Promoter shall attend such office and admit execution thereof.

19.2. All the expenses by whatever name called and stamp duty, registration fees, subsequent and ancillary expenses in respect of this Agreement, stamp duty, registration fee and other expenses for conveyance of structure in favour of society as aforesaid, conveyance of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project land, common amenities and facilities, open spaces, in favour of Federation/Apex society as aforesaid, any other document required to be executed in respect of and relating to the said Plot and / or the

transaction under this Agreement shall entirely be borne and paid by the Purchaser. Any deficit and penalty thereof, if any, shall also be borne and paid by the Purchaser only.

19.3. At the time of registration of conveyance or Lease of the project land to said apex Society or Federation, the Allottee shall born (his) their contribution and pay to the Owner/Promoter, the Allottee's share of stamp duty and registration charges payable, by the said Apex Society or Federation on such conveyance or lease or any document or instrument of transfer in respect of the structure of the said land to be executed in favour of the Apex Society or Federation.

20. VARIOUS CONTRIBUTIONS BY THE PURCHASER:

20.1. In addition to the sum mentioned above the Purchaser shall also pay to the Owner/Promoter an aggregate sum of Rs. _____/- (Rupees _____ only) as his/her/their contribution-

20.1.1 Rs._____/- for share money, application entrance fee of the society or limited company /federation/Apex Society.

20.1.2 Rs._____/- for formation and registration of the Society or Limited Company /Federation / Apex Society.

20.1.3 Rs._____/- for proportionate share of taxes and other charges/levies in respect of the Society or Limited Company/Federation/ Apex Society.

20.1.4 Rs._____/- for deposit towards provisional monthly contribution towards outgoings of Society or Limited Company/Federation/ Apex Society.

20.1.5 Rs._____/- For Deposit towards Water, Electric, and other utility and services connection charges &

20.1.6 Rs._____/- for deposits of electrical receiving and Sub Station provided in Layout

20.1.7 Rs._____/- For Deposit towards Gas pipeline and services connection charges &

20.1.8 All the above said amounts shall be paid by the Purchaser within 10 days of written intimation given to that effect by the Owner/Promoter but in any case before taking possession of the said Plot.

20.1.9 The above said amounts received by the Owner/Promoter shall be utilized for the specified purposes.

21. TERMINATION AND CANCELLATION:

21.1. Without prejudice to the right of Owner/Promoter to charge interest in terms of above mentioned clause, on the Purchaser/Allottee/s committing default in payment on due date of any amount due and payable by the Purchaser/Allottee/s to the Owner/ Promoter under this Agreement (including his/her proportionate share of taxes levied by concerned local authority and other outgoings) and on the Purchaser/Allottee/s committing three defaults of payment of installments, the Owner/Promoter shall at his own option, may terminate this Agreement:

21.1.1 Provided that, Owner/Promoter shall give notice of fifteen days in writing to the Purchaser/Allottee/s, by Registered Post AD at the address provided by the Purchaser/Allottee/s and/or mail at the e-mail address provided by the Purchaser/Allottee/s, of his intention to terminate this Agreement and of the specific breach or breaches of terms and conditions in respect of which it is intended to terminate the Agreement. If the Purchaser/Allottee/s fails to rectify the breach or breaches mentioned by the Owner/Promoter within the period of notice then at the end of such notice period, Owner/Promoter shall be entitled to terminate this Agreement.

21.1.2 Provided further that upon termination of this Agreement as aforesaid, the Owner/ Promoter shall refund the amount till then received from the Purchaser/Allottee/s within a period of 30 days, by deducting; (i) an amount of Rs. 1,00,000/- (Rupees One Lacs Only) towards liquidated damages and/or cancellation in addition to any interest (as specified in the Rules of the said Act) payable on outstanding amount overdue from the Purchaser/Allottee/s, (ii) the stamp duty, registration charges, cost of extra work etc. and (iii) the amount of Service Tax, VAT, GST, LBT or any other taxes charged by the Owner/Promoter to the Purchaser/Allottee/s 21.1.2 (i) Till the date of such termination and the Owner/Promoter herein shall be entitled to deal with the said Plot with any prospective buyer. Delay in issuance of any reminder/s or notice/s from the Owner/Promoter shall not be considered as waiver of Owner/Promoter's absolute right to terminate this Agreement.

21.1.3 For whatsoever reason if the Allottee/s herein, without any default or breach on his/her/their part, desire to terminate this agreement/ transaction in respect of the said Plot then, the Allottee/s herein shall issue a prior written notice by Registered Post AD only to the Owner/Promoter as to the intention of the Allottee/s and on such receipt of notice the Owner/Promoter herein shall be entitled to deal with the said Plot with

prospective buyers. After receipt of such notice of intention to terminate this agreement the Owner /Promoter shall issue a 15 days' notice in writing calling upon him/her/them to clear his/her/their housing loan amount with interest thereto if any and obtain NOC from his/her/their lender and execute and register Deed of Cancellation. Only upon the execution and registration of Deed of Cancellation and such NOC from his/her/their lender if applicable, the Allottee/s shall be entitled to receive the refund amount by deducting; (i) an amount of Rs. 1,00,000/- (Rupees One Lacs Only) towards liquidated damages and/or cancellation in addition to any interest (as specified in the Rules of the said Act) (ii) the stamp duty, registration charges, cost of extra work etc. and (iii) the amount of Service Tax, VAT, GST, LBT or any other taxes charged by the Owner/Promoter to the Purchaser/Allottee/s till the date of such termination of said Plot, within a period of six months, subject to terms of this Agreement.

21.1.4 It is specifically agreed between the parties hereto that, if the transaction in respect of the said Plot between the Owner/Promoter and Allottee/s herein terminated as stated hereinabove then all the instruments under whatsoever head executed between the parties hereto or between the Owner/Promoter and Allottee/s herein, in respect of the said Plot, shall stands automatically cancelled and either party have no right, title, interest or claim against each other.

21.1.5 In case of cancellation the Owner /Promoter will refund the amount till then paid by the Purchaser / Allottee to the Owner /Promoter after deducting standard deduction as envisage herein to the First Purchaser, whose name has appeared in first in the Agreement to sell. If any dispute arises between the joint Purchasers/Allottees of the said Plot about such refund to be given to, the Owner /Promoter will be kept refund amount in the escrow account till determination of such dispute finally. In case such dispute is resolved amicably and all the joint Purchasers /Allottees inform accordingly in writing to whom the refund amount will be paid, the Owner /Promoter will refund to such Purchasers /Allottees. If in case such dispute is resolved by decree or award of competent court then the Owner/Promoter will refund such amount as per decree or award. In case of dispute when the refund amount is kept in the escrow account the owner / promoter shall have right to sell / dispose off the said Plot to any prospective customer. The Purchasers / Allottees hereby gives express consent to such arrangement and Owner/Promoter is not required to take any separate consent or no objection from

the Purchasers / Allottees.

22. THE PERMISSION AND CONFIRMATION OF THE PURCHSER:

22.1. The said Purchaser/Allottee hereby expressly confirms having understood the concept and terms and conditions of Kaleidoscope Township and the said Purchaser/Allottee confirms and permits at all times for the arrangement made by Owner / Promoter and TMA for rendering the services to the residents of the Kaleidoscope Township. This confirmation is essence of this Agreement and same shall be binding at all times on respected Purchaser /Allottee.

22.2. The Purchaser/Allottee have been made aware by the Owner/Promoter that the Owner/Promoter has availed loan facilities for construction and development of the said and the encumbrances/charges of Lender of the Owner/Promoter is on the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project Land and units constructed thereon and sale proceeds or receivable thereof. As required by the Lender, the Purchaser/Allottee hereby agree, confirm and express his permission to any assignment by the Owner/Promoter in favour of the Lender or any third party nominated by it or the exercise of any takeover / step in rights of the Lender, pursuant to default by the Owner/Promoter under the loan transaction documents.

23. MISCELLANEOUS:

23.1. Notices:

23.1.1. All notices to be served on the Owner/Promoter in connection with this Agreement shall be deemed to have been duly served on the Owner/Promoter if sent by Registered Post at the following address:

KALEIDOSCOPE DEVELOPERS PRIVATE LIMITED,
PSC House, 111/111+2,
Dr. Ketkar road, Off Prabhat road,
Erandawane, Pune 411004

(a) All notices to be served on the Purchaser/s in connection with the Agreement shall be deemed to have been duly served on the Purchaser/s if sent to the Purchaser/s by Registered Post or email at his/her/their following address:

_____

_____

_____

Email ID:- _____

(b) It shall be the duty of the Purchaser/Allottee and the Owner/Promoter to inform each other of any change in address subsequent to the execution of this Agreement in the above address by registered Post failing which all communications and letters posted at the above address shall be deemed to have been received by the Owner/ Promoter or the Purchaser/Allottee, as the case may be.

(c) That in case there are joint Purchaser/Allottee all communications shall be sent by the Owner/Promoter to the Purchaser/Allottee whose name appears first and at the address given above, which shall for all intents and purpose to be considered above as properly served on all the Purchaser/Allottee/s

23.2. No other responsibility of the Owner/Promoter:

23.1. The Owner/Promoter herein has neither undertaken any responsibility nor has the Owner/Promoter agreed anything with the Purchaser orally or otherwise and there is no implied agreement or covenant on the part of the Owner/Promoter, other than the terms and conditions expressly provided under this agreement. This Agreement supersedes all earlier understandings, writings, oral commitments between the Owner/Promoter and Purchaser/ Allottee if any.

24. REAL ESTATE (REGULATION AND DEVELOPMENT) ACT 2016 & then Prevailing Laws:

Except otherwise mentioned and provided herein, this Agreement shall always be subject to the provisions of the **Real Estate (Regulation and Development) Act 2016**, & prevailing Laws and 'Regulations For Development of Integrated Township in Area Under Pune Regional Plan' formed under provisions of Maharashtra Regional and Town Planning Act, 1966.

25. JURISDICTION OF COURT IN CASE OF DISPUTE:

That the rights and obligations of the parties under or arising out of this Agreement shall be construed and enforced in accordance with the laws of India for the time being in force and the 'Pune Courts' will have the jurisdiction for this Agreement. Any dispute between parties shall be settled amicably. In case of failure to settle the dispute amicably, such unsettled dispute shall be referred to the Maharashtra Real Estate

Regulatory Authority as per the provisions of Real Estate Regulation and Development Act 2016 and the Rules and Regulation framed thereunder.

26. NAME OF THE PROJECT:-

Notwithstanding anything contained anywhere in this agreement, it is specifically agreed between the parties hereto that, the Owner/Promoter herein has decided to have the name of the entire **TP** is "KALEIDOSCOPE TOWNSHIP" and said project will be denoted by letters or name "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and or as decided by the Owner/Promoter and further erect or affix Owner/Promoters name board at situated places as decided by the Owner/Promoter herein on a Project and at the entrance of the scheme. The Purchaser/Allottee/s in the said project or proposed organization are not entitles to change the aforesaid project and remove or alter Owner/Promoter's name board in any circumstances. This condition is essential condition of this agreement.

27. RESOLUTION OF BOD OF THE OWNER/PROMOTER:

The Owner/Promoter being the Private Limited Company registered under the Companies Act, 1956, their Board of Directors have passed resolution in the meeting dated _____ authorizing the signatories on behalf of the Owner/Promoter to execute and register this Agreement. The copy of the said resolutions is annexed herewith as Annexure 'L'

28. STAMP DUTY:

The charges towards stamp duty and Registration of this Agreement shall be borne by the Purchaser/Allottee. Since the said Plot is out of the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project of the **TP** being carried out by the Owner/ Promoter on the said Township Land, as per the provisions of the Bombay Stamp Act, 1958, the appropriate stamp duty is affixed to this Agreement as stated in Stamp Duty particulars given hereunder.

29. PROMOTER SHALL NOT MORTGAGE OR CREATE A CHARGE

After the Owner/Promoter executes this Agreement, the Owner/Promoter shall not mortgage or create a charge on the said Plot and if any such mortgage or charge is made or created then notwithstanding anything contained in any other law for the time being in force, such mortgage or charge shall not affect the right and interest of the

Purchaser/Allottee who has taken or agreed to take such said Plot.

30. BINDING EFFECT

Forwarding this Agreement to the Purchaser/Allottee by the Owner/Promoter does not create a binding obligation on the part of the Owner/Promoter or the Purchaser/Allottee until, firstly, the Purchaser/Allottee signs and delivers this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan within 30 (thirty) days from the date of receipt by the Purchaser/Allottee and secondly, appears for registration of the same before the concerned Sub-Registrar as and when intimated by the Owner / Promoter. If the Purchaser / Allottee(s) fails to execute and deliver to the Owner/Promoter this Agreement within 30 (thirty) days from the date of its receipt by the Purchaser/ Allottee and/or appear before the Sub-Registrar for its registration as and when intimated by the Owner/Promoter, then the Owner/Promoter shall serve a notice to the Purchaser/Allottee for rectifying the default, which if not rectified within 15 (fifteen) days from the date of its receipt by the Purchaser/Allottee, application of the Purchaser/Allottee shall be treated as cancelled and all sums deposited by the Purchaser/Allottee in connection therewith including the booking amount shall be returned to the Purchaser/Allottee without any interest or compensation after deducting the standard deductions as envisaged herein above and the amount of Govt. Taxes such as GST and the stamp duty, registration charges which are actually paid to concern Govt. authorities.

31. ENTIRE AGREEMENT

This Agreement, along with its schedules and annexures, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the said Plot.

32. RIGHT TO AMEND

This Agreement may only be amended through written consent of the Parties by executing and registering subsequent deeds.

33. PROVISIONS OF THIS AGREEMENT APPLICABLE TO ALLOTTEE / SUBSEQUENT PURCHASERS/ALLOTTEES

It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising hereunder in respect of the said Project shall equally be applicable to and enforceable against any subsequent Purchaser/Allottees of the said Plot, in case of a transfer, as the said obligations go along with the said Plot for all intents and purposes.

34. SEVERABILITY

If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made thereunder or under other applicable laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement and to the extent necessary to conform to Act or the Rules and Regulations made thereunder or the applicable law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.

35. METHOD OF CALCULATION OF PROPORTIONATE SHARE WHEREVER REFERRED TO IN THE AGREEMENT

Wherever in this Agreement it is stipulated that the Purchaser/Allottee has to make any payment, in common with other Purchaser/Allottee(s) in said Project, the same shall be in proportion to the said sharing area (which includes carpet area plus enclosed balcony if any/ sit out/ formed terrace/ entrance porch of the of the said Plot) to the total sharing area of the entire Said Project. TMC would be charged to the said Co-operative Hsg. Society on the total sharing area (i.e. the total of all plots individual sharing area) of all the plots.

36. FURTHER ASSURANCES

Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in additions to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

37. PLACE OF EXECUTION

The execution of this Agreement shall be complete only upon its execution by the

Owner / Promoter through its authorized signatory at the Owner / Promoter's Office, or at some other place, which may be mutually agreed between the Owner / Promoter and the Purchaser / Allottee, in after the Agreement is duly executed by the Purchaser/Allottee and the Owner/Promoter or simultaneously with the execution the said Agreement shall be registered at the office of the Sub-Registrar. Hence this Agreement shall be deemed to have been executed at Pune.

38. LEGAL EXPENSES

The Purchaser/Allottee shall pay to the Owner/Promoter a sum of Rs. 7000/- for meeting all legal costs, registration charges and expenses, including professional costs of the Attorney-at-Law/Advocates of the Owner/Promoter in connection with formation of the said Society, or Limited Company, or Apex Society or Federation and for preparing its rules, regulations and bye-laws and the cost of preparing and engrossing the conveyance.

39. Dispute Resolution :- Any dispute between parties shall be settled amicably. In case of failure to settled the dispute amicably, which shall be referred to the Maharashtra Real Estate Regulatory Authority as per the provisions of the Real Estate (Regulation and Development) Act, 2016, Rules and Regulations, thereunder.

40. DECLARATION BY PARTIES:

The Parties hereto have carefully read and understood all the contents of this Agreement along with all the Schedules and Annexure thereof and also got the same understood in their vernacular language and upon full satisfaction of the same the Parties hereto have signed this Agreement in the presence of the witnesses as stated below.

STAMP DUTY PARTICULARS

Location :-	Kaleidoscope Township, Mouje Bhugaon, Taluka Mulshi, District Pune.
Project Name	"Kaleidoscope R5 -Misty Greens - phase 3-B"
Type of property :-	Plot

Plot No.	_____
Prescribed Value of the said Plot	Rs._____/-
Consideration of the said Plot as per Agreement	Rs._____/-
Stamp Duty paid on	Rs._____/-
Stamp Duty amount paid	Rs._____/-

SCHEDULE I

(Description of the said present **township land**)

All those pieces and parcels of land totally admeasuring 47 Hectares70.39 ares i.e. 477039.00 Sq. Mtrs., situated at Bungalow plotge Bhugaon, Taluka: Mulshi, District: Pune, within the limits of Zilha Parishad Pune, Panchayat Samiti Taluka Mulshi and in the Registration Sub- District Taluka Mulshi (Paud), District : Pune consisting of pieces of lands bearing Survey Nos. and Areas as follows:

Sr.no.	Survey no	Area in Hectare and Ares		Sr.no.	Survey no	Area in Hectare and Ares
1	125/5	00 – 18		90	156/8	00 – 03
2	126/2	00 – 12		91	157	02 – 73
3	126/3	00 – 14		92	159	00 – 11
4	126/4	00 – 21		93	188/2	00 – 10
5	127/1	00 – 26		94	197/1	00 – 43
6	127/3	00 – 27		95	197/5	00 – 73
7	127/4	00 – 07		96	197/6	00 – 21
8	127/5	00 – 07		97	197/7	00 – 14
9	128/1	00 – 17		98	197/9	00 – 06
10	128/4	00 – 07		99	197/12	00 – 16
11	129/2	00 – 07		100	197/16	00 – 87
12	129/5	00 – 05		101	197/18	00 – 10
13	131/3	00 – 04		102	197/21	00 – 08
14	132/1	00 – 16		103	197/23	00 – 05
15	132/2	00 – 11		104	197/24	00 – 06
16	133/1	00 – 21		105	197/26	00 – 03
17	133/2	00 – 02		106	197/27	00 – 14
18	133/3	00 – 15		107	197/28	00 – 12
19	134/1	00 – 06		108	197/29	00 – 24
20	135/1	00 – 05		109	197/30	00 – 64

21	135/3	00 – 01		110	197/32	00 – 13
22	136/1	00 – 03		111	198	01 – 28
23	136/3	00 – 30		112	199	03 – 41
24	137/1+2	00 – 20		113	200	01 – 20
25	138/1	00 – 14		114	201	00 – 14
26	138/2	00 – 08		115	128/3	00 – 13
27	138/4	00 – 06		116	129/5	00 – 05
28	140	05 – 34		117	129/6	00 – 05
29	141/2	00 – 04		118	131/3	00 – 04
30	141/3	00 – 18		119	131/6	00 – 06
31	141/4	00 – 08		120	131/7	00 – 06
32	141/5	00 – 005		121	133/1	00 – 07
33	142/1	00 – 05		122	133/4	00 – 05
34	142/2	00 – 02		123	133/5	00 – 03
35	142/6	00 – 09		124	134/1	00 – 06
36	142/7	00 – 09		125	135/1	00 – 05
37	143	04 – 33		126	135/3	00 – 01
38	144/1/2a(1b/1)	02 – 000		127	136/1	00 – 03
39	144/1/2b(1b/2)	00 – 235		128	137/1+2	00 – 20
40	144/2	01 – 65		129	155/2	00 – 04
41	144/3a	00 – 81		130	156/2	00 – 04
42	145/1	00 – 03		131	156/8	00 – 03
43	145/2	00 – 04		132	197/8	00 – 07
44	145/3	00 – 07		133	197/24	00 – 06
45	145/5	00 – 03		134	197/27	00 – 14
46	146/1	02 – 02		135	200	00 – 40
47	146/2	00 – 19		136	128/3	00-047
48	146/3	00 – 02		137	128/5	00-137
49	146/5	00 – 59		138	129/6	00-017
50	146/6	00 – 18		139	131/1	00-256
51	147/2	00 – 07		140	131/3	00-027
52	147/3	00 – 05		141	131/5	00 – 040
53	148	00 – 15		142	134/1	00 – 045
54	149/1	00 – 06		143	135/2	00 – 180
55	150/1	00 – 06		144	135/3	00 – 003
56	150/2	00 – 05		145	136/1	00 – 065
57	150/3	00 – 07		146	137/1	00 – 148
58	150/4	00 – 04		147	140	00 – 022
59	150/6	00 – 03		148	141/1	00 – 099
60	150/7	00 – 02		149	141/2	00 – 002
61	151/1	00 – 06		150	141/5	00 – 0008
62	152/2	00 – 11		151	143	00 – 115
63	153/1	00 – 05		152	146/1	00 – 917
64	153/2	00 – 04		153	146/6	00 – 176
65	154/2	00 – 14		154	147/3	00 – 007
66	154/4	00 – 64		155	148	00 – 14
67	154/5/1	00 – 14		156	149/2	00 – 40
68	154/5/2	00 – 07		157	150/7	00 – 008
69	154/5/3	00 – 07		158	151/2	00 – 101
70	154/6	00 – 80		159	152/1	00 – 048
71	154/7	00 – 24		160	154/1	00 – 070
72	154/8	00 – 84		161	154/6	00 – 300
73	154/9	00 – 09		162	154/12	00 – 010

74	154/10	00 – 14		163	154/13	00 – 015
75	154/11	00 – 47		164	155/6	00 – 027
76	154/15	00 – 06		165	156/5	00 – 003
77	155/1	00 – 06		166	159	00 – 039
78	155/2	00 – 04		167	197/6	00 – 080
79	155/4	00 – 08		168	197/11	00 – 253
80	155/5	00 – 11		169	197/14	00 – 18
81	155/6	00 – 07		170	197/15	00 – 55
82	155/7	00 – 13		171	197/17	00 – 16
83	156/1	00 – 07		172	197/18	00 – 24
84	156/2	00 – 03		173	197/29	00 – 09
85	156/3	00 – 03		174	197/32	00 – 10
86	156/4	00 – 12		175	205	00 – 17
87	156/5	00 – 01		176	208	00 – 51
88	156/6	00 – 22		177	209	00 – 36
89	156/7	00 – 08				
TOTAL - 47 Hectares 70.39 ares i.e. 477039.00 Sq. Mtrs						

All the pieces of lands described as above, along with all the rights of easement and appurtenances therewith.

SCHEDULE-II

Entire Project Land" **or** "Said Entire Project Land."

(Description of the "Kaleidoscope R5 -Misty Greens - phase 3")

All that portion of land covered under the **"Kaleidoscope R5 - Misty Greens - Phase 3"** project land including sub-phases: 3(A), 3(B), and 3C currently admeasuring to a total area of 66956.09 sq.mtrs, consisting of residential Sector/Plots as per the sanctioned layout plan 3A,3B &3C including garden, Open space, utility & internal road) carved out of the land.This land subject to change as per modified PLU from time to time. **Said Entire Project Land** bounded as under:-

On or towards East : HG6, OS5

On or towards South : Sector R9, PG5

On or towards West :Town hall, OS4 &EA3

On or towards North : PG3, HG7

SCHEDULE-III

(Description of the "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land)

All that portion of land covered under "Kaleidoscope R5 -Misty Greens - phase 3-B"Project Land, admeasuring net plot area admeasuring about 11116.08 Sq. Mtrs being Sector R 5 bearing survey no.146/1, 146/3, 146/5, 146/6, 148, 149/1, 149/2, 151/1, 151/2,

152/1,152/2, 154/1, 154/2, 154/4, 154/6, 154/7, 154/8, 154/10 & 154/11 hereinabove referred to as the "**PROJECT LAND**"which is carved out of the said Present Township Land situated at Bhugaon, Tal. Mulshi, Dist. Pune sanctioned vide plan bearing no. BMU/ Mou. Bhugaon / survey no. 125/5 & others/ pra.kr. 2012/24-25/9712 dtd 24/01/2025 (----- Bungalow Plots) together with **easement appurtenances, ingress,** and pathway bounded as under:-

On or towards East : HG6, OS5

On or towards South : Sector R9, PG5

On or towards West :Town hall, OS4 &EA3

On or towards North : PG3, HG7

SCHEDULE-IV

(DESCRIPTION OF 'THE SAID SECTOR/ BUNGALOW PLOT')

All that piece and parcel of the Bungalow Plot/Sector agreed to sale, plot bearing Sector No. **R5 -** phase 3-B **……**, admeasuring **…….** Sq.Mtrs., in the project "Kaleidoscope R5 -Misty Greens - phase 3-B**"**situated within the said Township Land described in the Schedule I hereinabove, sanctioned with FSI admeasuring ---------- Sq.Mtrs. as per the said PLU; together with easement, appurtenances, ingress, egress, pathways and bounded as under:

On or towards East :

On or towards South :

On or towards West :

On or towards North :

The said Bungalow Plot/Sector is more particularly shown and delineated in Red on the plan annexed hereto as Annexure 'C', with Project Amenities more particularly described in the Annexure 'F'.

Second Schedule Above Referred to

~~Here set out~~ the nature, extent and description of common areas and facilities.

A.) Description of the Common areas Provided:

	Types of Common areas provided	Proposed Date of Occupancy Certificate	Proposed Date of handover for use	Size /area of the common areas provided

I.	Senior citizen Area	On or before 30/01/2030	On or before 30/01/2030	NA
	Children'Play Area	On or before 30/01/2030	On or before 30/01/2030	NA
II.	Recration Center	On or before 30/01/2030	On or before 30/01/2030	NA
III.	Open Multipurpose Court	On or before 30/01/2030	On or before 30/01/2030	NA
IV.	Tennis Court	On or before 30/01/2030	On or before 30/01/2030	NA
V.	STP/LT Room	On or before 30/01/2030	On or before 30/01/2030	NA
VI.	Lansdcape Garden Area	On or before 30/01/2030	On or before 30/01/2030	NA
VII.	Senior citizen Area	On or before 30/01/2030	On or before 30/01/2030	NA
VIII.	Children'Play Area	On or before 30/01/2030	On or before 30/01/2030	NA
IX. iii.	Recration Center	On or before 30/01/2030	On or before 30/01/2030	NA

B.) Facilities /amenities provided /to be provided within the building including in the common area of the building:

	Types of facilities /amenities provided	Phase Name /number	Proposed Date of Occupancy Certificate	Proposed Date of handing over to the Society /common organization	Size/area of the facilities / amenities	FSI Utilized or free of FSI
i.	NA	NA	NA	NA	NA	NA
ii.	NA	NA	NA	NA	NA	NA
iii.	NA	NA	NA	NA	NA	NA

C.) Facilities /amenities provided / to be within the layout and /or common area of the Layout:

	Types of facilities /amenities provided	Phase Name /number	Proposed Date of Occupancy Certificate	Proposed Date of handing over to the Society /common organization	Size/area of the facilities / amenities	FSI Utilized or free of FSI
I.	Senior citizen	phase 3 A &	On or	On or	NA	NA

	Area	B	before 30/01/2030	before 30/01/2030		
II.	Children 'Play Area	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA
III.	Recreation Center	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA
IV.	Open Multipurpose Court	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA
V.	Tennis Court	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA
VI.	STP/LT Room	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA
VII.	Landscape Garden Area	phase 3 A & B	On or before 30/01/2030	On or before 30/01/2030	NA	NA

D.) The size the location of the facilities /amenities in form of open spaces (RG/PG etc.) Provided/ to be provided within the plot and / or within the layout.

	Types of open spaces (RG/PG) to be provided	Phase name /number	Size open spaces to be provided	Proposed Date of availability for use	Proposed Date of the handing over to the common organization
i.	NA	NA	NA	NA	NA
ii.	NA	NA	NA	NA	NA
iii.	NA	NA	NA	NA	NA

E.) Details and specifications of the lifts:

	Types of Lift (Passenger / service /stretcher/ goods /fire evacuation /any other	Total no. of Lifts provided	Number of passenger or carrying capacity in weight (kg)	Speed (mtr/Sec)
i.	NA	NA	NA	NA
ii.	NA	NA	NA	NA
iii.	NA	NA	NA	NA

ANNEXURES

ANNEXURE 'A'	Master Layout (PLU) of Kaleidoscope Township Project
ANNEXURE 'B'	Layout of Kaleidoscope R5 -Misty Greens - phase 3-B"Project Land
ANNEXURE 'C'	Plan of the said Sector/Plot
ANNEXURE 'D'	Optional Facilities of Township (PAID)
ANNEXURE 'E-1'	Township Amenities
ANNEXURE 'E-2'	Township Utilities
ANNEXURE 'F'	Kaleidoscope R5 -Misty Greens - phase 3-A+B+C" Sector Amenities
ANNEXURE 'F-1'	Amenities For Kaleidoscope R4-Misty Green, R3 -Misty Greens & Kaleidoscope R5 -Misty Greens - phase 3"
ANNEXURE 'F-2'	Common Amenities in Kaleidoscope R4-Misty Green, R3 -Misty Greens & Kaleidoscope R5 -Misty Greens - phase 3"
ANNEXURE 'G'	Copy of 7/12 extract, Locational Clearance & Letter of Intent
ANNEXURE 'H'	Advocate Title Certificate
ANNEXURE 'I'	Copies of Approvals such as N.A., Layout
ANNEXURE 'J'	MahaRERA Registration Certificate
ANNEXURE 'K'	Payment Schedule
ANNEXURE 'L'	Board of Director's Resolution of the Owner/Promoter

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT TO SELL ON THE DATE AND AT THE PLACE HEREIN

BEFORE FIRST MENTIONED.

SIGN		THUMB	PHOTO
SIGNED AND DELIVERED by Within named Owner/Promoter – Kaleidoscope Developers Private Limited **through its Authorizedsignatory:**			
Within named Purchaser **1)** **2)** **3)** 4)			
SIGN		THUMB	PHOTO
SIGNED AND DELIVERED by			

Within named Land Owners – 1.Shree. Shivaji Baban Shedge & others 2.Shree. Rambhau Sopan Shedge & others 3.Shree. Bhagwan Rambhau Shedge, & others 4.Surekha Ankush Shedge, & others 5.Shree. Baban Tukaram Shedge, & others through their constituted attorney Lucifer ---------- 1 to 5 hereinabove through their common constituted attorney **KALEIDOSCOPE DEVELOPERS PRIVATE** LIMITED through Authorised Signatory Mr. Pushakar Pramod Apte,		

ANNEXURE 'K'
Payment Schedule

KDPL Payment Schedule	%
Booking	
Advance	10%
At Agreement Execution	20%
Upon completion of fencing of plot	9%
Upon start of internal road work	20%
Upon start of utility work	20%
At the time of offer for Possession	20%
Infra Charges	
TDS	1%